

# International Monitoring and Labor Rights: Third Party Participation Deepens Compliance<sup>\*</sup>

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## Abstract

Issuing monitoring reports is a key mechanism through which international organizations provide information to facilitate compliance. Yet, there is great variation in whether such monitoring leads to compliance. This paper argues that a critical design feature that determines this effectiveness is its accessibility to third parties. These actors provide information that allows international organizations to verify states' self-claim of compliance and give more tailored advice on resolving noncompliance. Consequently, reporting processes that allow third-party participation are more likely to affect deeper compliance. To test this argument, I adopt a mixed-method approach under the institutional context of the International Labor Organization (ILO). The ILO sets a wide range of labor standards and adopts various reporting mechanisms to monitor member states' compliance with labor rights. I compare two reporting mechanisms employed by the ILO. I collect 177 member states' convention ratification records and ILO's reports regarding their collective labor rights compliance between 1985-2012. ILO reports significantly improve the institutional compliance of the member states with labor standards. Moreover, reports that involve third-party participation further improve states' behavioral compliance. Then, using two case studies on Cambodia and China, I provide evidence that the deepening of compliance follows from the dynamic monitoring in the report-compilation process, in which the ILO uses the reported information to engage international audiences and leverage compliance.

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# 1 Introduction

Whether international organizations (IOs) can meaningfully hold states accountable for their international commitments is a question central to understanding how global governance operates in practice. Most IOs lack the material capacity to compel compliance, and instead must rely on information-based strategies, such as monitoring states' compliance records by issuing IO reports. In recent years, an increasing number of IOs have sought to encourage states to uphold their international commitments by evaluating states' performance through various reporting mechanisms. Across issues areas, such as human rights, finance, and public health, these mechanisms have become the cornerstone of IO's efforts in global governance (Kelley and Simmons, 2019).<sup>1</sup> Despite a growing reliance on IO monitoring and reporting, the empirical record of their success remains mixed. What, then, explains the variation in reporting mechanisms' effectiveness?

This paper presents the novel argument that the quality of states' compliance output is consequentially determined by the quality of IO reports' information input. Different monitoring mechanisms – even those nested in the same organizational context – collect information on compliance from different actors. Whereas some mechanisms primarily rely on states' self-reported information, others also take accounts supplied by third-party actors, such domestic interest groups, NGOs, and international observers, into consideration.<sup>2</sup> I leverage this variation in monitoring mechanisms and trace how their information sources translate into distinct pressures on target states. Recent scholarships have challenged the central role of enforcement capacity in achieving compliance (Krommendijk, 2015; Kelley, 2017; Koliev, Sommerer and Tallberg, 2021; Morse, 2022).<sup>3</sup> However, despite showing that monitoring matters for compliance, these research often treat “monitoring” as a single tool. By

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<sup>1</sup>A wide range of high-profile international organizations and institutions – such as the Universal Periodic Review (UPR) on human rights, the Paris Agreement on climate change, and the UN's The Millennium Development Goals – frequently request information from their member states, evaluate their performance, and issue public reports on the degree to which members comply with their international commitments.

<sup>2</sup>For example, mechanisms like the Biennial Transparency Report for the Paris Agreement rely primarily on member states' self-reported efforts in meeting their nationally determined contributions. Others, such as the UPR, collect extensive information provided by human rights NGOs.

<sup>3</sup>I refer to enforcement as the mechanism through which IOs can directly carry out or encourage member states to engage in coercive measures, such as military intervention or economic sanction. See Downs, Locke and Barsoom (1996); Keith (1999); Hafner-Burton (2013).

examining different types of input channels, I shift the focus from whether IOs engage in monitoring matters to whether the design of monitoring mechanisms affects their effectiveness.

By comparing whether the source of information is states' self-reporting or supplied by third-party actors, this paper presents the first comprehensive test as to what type of information has more impact for compliance. One of the most influential arguments for why monitoring in international institutions works is that it provides more information on the compliance record of member states (Keohane, 1984; Dai, 2002). This information then leads to compliance by engaging downstream actors, who can influence the behavior of the targeted state through various channels such as economic incentives (Barry, Chad Clay and Flynn, 2013; Peterson, Murdie and Asal, 2018), legal challenges (Allen, 2023), social pressures (Terman and Voeten, 2018), and mass mobilizations (Simmons, 2009; Kelley, 2017). Therefore, building on theoretical importance of monitoring, I further theorize and evaluate how different monitoring mechanisms vary in their effectiveness.

Opening the monitoring mechanism to third parties fundamentally alters both the quantity and the character of information available to IOs. Third-party actors supply detailed accounts of how rules and standards are implemented in practice – information that governments lack incentives to disclose. Compared to states' self-reports, information supplied by third-party actors also tends to be more accurate and verifiable since reputation concerns often deter them from abusing or misusing the reporting mechanisms, and the future credibility of these actors hinges on their precision. With these richer, more transparent information, IOs can move beyond merely flagging gaps in formal institutions to diagnosing specific behavioral violations, allowing them to offer tailored suggestions for states to change what they do, not just what they say. In contrast, mechanisms that rely solely on state self-reports constrain IOs to evaluating institutional compliance “on paper”.

Based on the character of information available to IO monitors, I distinguish two kinds of compliance international monitoring can achieve. First, I define institutional compliance as reforms to statutes, regulations, or administrative procedures. These changes are visible on paper and are often technocratic in nature. Second, I define behavioral compliance as the shifts in day-to-day practices of how officials and employers actually treat workers, organize inspections, and remedy violations.

While international monitoring often seek both types of compliance, they often occur in separate forms: states may adopt new policies without following them; alternatively, they may halt certain practices without banning them by law. To evaluate effectiveness of IO's monitoring efforts, therefore, one must assess both the rules and behavior. When third-party participation is built into a reporting process, we should expect both institutional and behavioral compliance; when it is absent, the impact is likely to be confined to institutional compliance alone.

A major challenge to empirically evaluate these theoretical expectations is that the design of these mechanisms is often confounded by issue-specific or IO-level factors, such as the organization's resources, legitimacy, membership composition, issue salience, and so on. While influencing the choice of monitoring mechanism, these confounders can also explain the levels of compliance. Thus, to examine how variations in the designs of monitoring mechanisms affects states' compliance, I focus on the case of the International Labor Organization (ILO) in this paper. Building on this single-IO research design, I offer a systematic comparison of two mechanisms and identify a crucial dimension in the monitoring process in which they differ: the degree of third-party participation.

The ILO offers a uniquely valuable context for investigating the effect of reporting mechanism designs. As one of the oldest and most normatively authoritative IOs on labor issues, the ILO is widely recognized as a legitimate source of information on labor standards in countries (Mosley, 2011; Koliev, Sommerer and Tallberg, 2021). It also relies on a range of reporting mechanisms to promote member states' respect for labor rights, which can be classified into two categories. One mechanism empowers the ILO to proactively assess member states' compliance with the labor standards they have committed to; and the other mechanism retrospectively collects information from third parties – such as domestic unions, employers, and international NGOs – in reaction to alleged compliance violations. Among IOs that can elicit compliance through their legitimacy and focal-point power (Dai, 2005; Morse, 2022), the ILO presents a hard test because it has limited enforcement capacity. It is also an ideal setting within which the comparison between different designs of monitoring mechanisms is free from IO and issue area-level confounders.

To assess the different impacts of these two monitoring mechanisms on compliance, I compiled a

novel dataset of ILO reports on collective labor rights. I collected reports from two committees in the ILO: the Committee of Experts on the Application of Conventions and Recommendations (CEACR), which generates reports based on member states' self-submitted information; and the Committee on Freedom of Association (CFA), which allows third parties such as unions, employer associations, and NGOs to lodge complaints of mistreatment from member states. Whereas the former has increasingly received recent academic interest (Kahn-Nisser, 2014; Koliev and Lebovic, 2018; Koliev, Sommerer and Tallberg, 2021), existing studies have yet to examine the effectiveness of CFA reports, which represent a major component of the ILO's work by recording a rich corpus of detailed labor disputes. To measure the impact of CEACR monitoring, I collect all member states' treaty ratification status and over 1,500 information requests they receive from the CEACR. For CFA monitoring, I use case-level information on more than 3,000 complaints and 8,000 reports generated by the CFA. Together, these novel data from ILO reports enable a rare within-organization comparison of monitoring mechanisms. Empirically, I find that when exposed to the monitoring mechanism that requires only self-reporting from its members, states demonstrate positive improvement in their labor institutions' compliance to international standards, but no improvements in behavioral compliance is observed. In comparison, when exposed to the mechanism that allows input from third-party actors, states improve in both institutional and behavioral respects for domestic labor rights.

This article advances our current understanding of how and when international monitoring works (and fails). I show that the quality of compliance output is consequentially determined by the quality of information input. By comparing the two reporting mechanisms within the same organization, I show that the design of these mechanisms consequentially determines the ILO's ability to leverage compliance from member states. The varieties of reporting mechanisms and their diverging effects thus help explain the mixed findings on the ILO's ability to achieve its policy goals. Existing literature on the ILO primarily focuses on the ratification of labor conventions and the ensuing monitoring process, which involves only states' self-report. As a result, while some studies have found that ILO monitoring leads to better labor standards (Strang and Chang, 1993; Rodrik, 1996; Koliev and Lebovic, 2018; Koliev, Sommerer and Tallberg, 2021), others have concluded that ILO conventions do

little to, and sometimes even worsen, the domestic treatment of workers (Boockmann, 2010; Peksen and Blanton, 2017). The empirical addition of reporting mechanism with third-party participation, therefore, contributes to a more comprehensive evaluation over the ILO's role in promoting labor rights.

More broadly, understanding the importance of monitoring input also provides insight into the mixed findings in the larger monitoring literature. Recent literature on international monitoring, such as the Global Performance Index literature, emphasizes the credibility of information senders (Kelley and Simmons, 2019). While extending the role of monitors beyond IOs by examining actors like foreign governments, NGOs, and firms, these studies retain the black-box view as to how monitors collect information, and from whom. The input-oriented account provided in this paper, therefore, help explain why scholars have found mostly policy and institutional reforms when faced with monitor-led processes like the *Aids Transparency Index* (Honig and Weaver, 2019) and the (now-cancelled) *Doing Business* reports from the World Bank (Doshi, Kelley and Simmons, 2019); whereas when third-parties have access to the reporting process, such as in the *Reform Efforts Survey* (Masaki and Parks, 2020), the Universal Periodic Review (Schoner, 2024), and the *Financial Action Task Force* recommendations (Morse, 2022), studies have often found improvements based on behavioral measurements.

The rest of this article is organized as follows. Section 2 develops the theoretical argument that IO reporting affects compliance by generating a wide spectrum of information. Section 3 discusses the various reporting institutions in the ILO and develops the main hypotheses of this paper. Using labor indices and archival documents, Section 4 performs two sets of quantitative analyzes that capture different levels of monitoring effectiveness of the International Labor Organization (ILO) strategy. Section 5 then further explores the potential mechanisms of the theory using the compliance records of Cambodia and China in the ILO. Section 6 concludes with several implications based on the findings presented in this paper, as well as discussing potential future research directions.

## 2 Information Provision and IO Monitoring

As Dai (2002, pp. 407-408) observed, “Information provision by international institutions lies at the foundation of neoliberal institutionalism... it is in fact a centerpiece of neoliberal institutionalism that international institutions provide compliance information to facilitate compliance with international agreements”. The link between information provision and compliance outcome has been extensively theorized. On the one hand, functional theories posit that when a state is revealed to violate its previous commitments, it suffers a reputation cost and is seen as less reliable in future cooperation (Keohane, 1984). On the other hand, constructivists argue that the consequence of social punishments, ranging from “shaming, shunning, exclusion, and demeaning, or dissonance derived from actions inconsistent with role and identity” (Johnston, 2001, p.499), also incentivizes states to avoid being cast as a “rule breaker”. Furthermore, empirical studies have found evidence that these mechanisms are active both at the domestic and international level. Domestically, the information provided by IOs may galvanize citizens or interest groups to challenge their government either in streets or in courts (Simmons, 2009; Conrad and Ritter, 2019; Morse and Pratt, forthcoming). Internationally, the information generated by IOs against a target country can be picked up by third parties such as international nongovernmental organizations (INGOs), transnational activists, or other governments (Keck and Sikkink, 1998; Seidman, 2007; Murdie, 2014). These actors may in turn exert pressure on the violator or generate further attention and criticism.

Therefore, monitoring mechanisms in IOs have received increasing scholarly attention due to their potential to provide this public good: a centralized source of information on the degree to which states comply with their international commitments (Kelley and Simmons, 2019; Morse, 2022). As a form of monitoring mechanism frequently adopted by international institutions, IO reports provide three types of information on compliance. Firstly, IO bureaucrats receive the content of information submitted by states themselves and, when permitted, information supplemented by third actors who are neither the IO or the state, such as domestic citizens, NGOs, and firms. Secondly, based on these submissions, reporting mechanisms, often staffed by specialized experts or international bureaucrats, provide an evaluation of a country’s performance for other member states to reference.

Lastly, a document containing both the submission and evaluation is usually compiled into a document (namely, the report) and circulated, so that the information regarding the states, and whether or not they participated in the mechanism in the first place, becomes publicly observable.

While these reports can take on a wide range of formats, few studies have empirically investigated how variations across these monitoring mechanisms affect compliance outcomes. As such, the rest of this section first discusses the two most common reporting formats: police patrols and fire alarms, and how they differ from each other. Then, I provide an input-oriented theory on how these differences may explain the variation in their effectiveness. Lastly, using the organizational context of the ILO, I provide examples of both types of mechanisms by describing the reporting procedures in two major committees in the ILO.

## 2.1 Varieties of Monitoring Mechanisms

Inspired by the seminal work of [McCubbins and Schwartz \(1984\)](#) on congressional oversight, the literature on international monitoring often categorizes monitoring mechanisms into two camps. One mechanism institutes a centralized monitor who examines member states' activities with the aim of deterring violating outcomes. In contrast, the other mechanism is activated after decisions are made, most often by victims of such decisions, who then relay the consequences of these decisions to the monitors ([Dai, 2002](#); [Hoffman, 2002](#); [Tallberg, 2002](#); [Nielson and Tierney, 2003](#); [Creamer and Simmons, 2020](#); [Eilstrup-Sangiovanni and Sharman, 2022](#)). Analogously, the former is often referred to as *police patrol* oversight, and the latter as *fire alarm* oversight.<sup>4</sup> In addition, it should be noted that while scholars have consistently found that fire alarms are more effective in domestic settings ([Kiewiet and McCubbins, 1991](#); [Hall and Miler, 2008](#); [Ban and Hill, 2023](#)), the lack of clear legal authorities and

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<sup>4</sup>For example, a classic case of police patrol can be found in the IAEA, which requires states to regularly self-report stocks of nuclear weapons and subsequent annual progress made toward non-proliferation. These claims are then by routine inspections led by the organization, whose outcomes are then published in the Nuclear Safety Review, a report issued by the IAEA annually ([Goldschmidt, 1999](#)). Conversely, the reporting mechanisms in human rights institutions, such as the (then) UN Human Rights Committee ([Dai, 2002](#)) and the Convention Against Torture ([Creamer and Simmons, 2019](#)) are ones that closely resemble fire alarms. These international institutions permit and frequently receive independent input from individuals and NGOs, whose on-the-ground experience of human rights abuses often triggers further investigative reviews. During these processes, the accounts and data provided by these third-party actors are then also used to cross-reference the claims offered by government officials.



means of enforcement have made such comparisons difficult and sparse in the international monitoring literature.

Building on this categorization, I argue that a major difference between the two mechanisms is how much third-party actors can participate in the information input process. Since the consequences of states' decisions can only be observed post hoc, third-party actors often lack the necessary channel to participate in police patrol oversights. Thus, police patrols are more dependent on the centralized and active efforts of international monitors – a role commonly fulfilled by IO technocrats (Slaughter, 2005; Sabel and Zeitlin, 2010). In comparison, fire alarm oversights need information on noncompliance to trigger the reporting process. Instead of relying on monitors' own surveillance, therefore, fire alarms are characterized by procedures that enable third-party actors to participate in the monitoring process.

Given this variation in the design of monitoring mechanisms, scholars have sought to theorize when an IO may prefer one design over another. For instance, fire alarms are often seen as more trusting towards member states than police patrols. Fire alarms imply a belief that violations would be relatively sparse, whereas police patrols operates under the assumption that non-compliance is likely to occur once the police have gone away (Hoffman, 2002; Keating and Abbott, 2021).<sup>5</sup> As a result, police patrol often require more financial and personnel resources than fire alarms (Nielson and Tierney, 2003). Thus, in organizations like the IAEA, inter-state trust is difficult to form around high-salience issues like nuclear containment. Moreover, they are often equipped with sufficient material resources and specialized expertise. Under these settings, monitoring mechanisms often take on the form of police patrols. In comparison, within the human rights regime, one state's violation is unlikely to cause damage in other states. In addition, many human rights institutions suffer from a lack of resources. As a result, they frequently turn to fire alarms that allow victims of human rights abuses to alert the institutions about their experience.

IOs' selective adoption of monitoring mechanisms, therefore, means that it is not feasible to com-

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<sup>5</sup>Here, trust is defined as one's "belief that potential trustees will avoid using their discretion to harm the interests of one" (Hoffman, 2002, p.377). In other words, trust is more likely to form when a violation of trust is less likely to cause damage.

pare the effectiveness of different mechanisms across organizations. The factors that explain mechanism designs might also explain post-implementation levels of compliance. To address this issue, this article focuses on two monitoring mechanisms *within* the ILO: police patrol oversight led by the CEACR and fire alarm oversight led by the CFA. Before diving into the analysis of how these mechanisms function in the context of the ILO, however, it is necessary to first introduce some theoretical reasoning as to why we may expect these reporting mechanisms, which are neither designed nor empowered to enforce compliance, to have the power to deter or rectify violations in the first place.

## 2.2 Why Monitoring Mechanisms Work (Differently)

As mentioned earlier in this section, information provided by reporting mechanisms is crucial in facilitating compliance. By itself, however, information does little to change violating behaviors among member states directly. Instead, two conditions usually need to hold for information on compliance to take on actual effects. First, there needs to be an audience that is attentive to the information disseminated from the reporting mechanisms. Upon receiving the information, the audience would then take actions that influence the decisions made by the targeted state. The literature on compliance has discussed extensively who can act as the audience, including other states (Hafner-Burton, 2013; Terman and Byun, 2022), interest groups (Davis, 2012; Peterson, Murdie and Asal, 2018), NGOs (Murdie, 2014), firms (Barry, Chad Clay and Flynn, 2013; Distelhorst and Locke, 2018), citizens (Simmons, 2009), and even individuals (Sikkink and Kim, 2013). These vested audiences are incentivized to react to the information disseminated through a monitoring mechanism as they either share similar normative visions espoused by the IO, or the violation either directly or indirectly harms them. Thus, via channels like sanction (Nielsen, 2013), litigation (Fjelstul and Carrubba, 2018), social pressure (Terman and Voeten, 2018), public opinion (Chaudoin, 2023), and mass mobilization (Conrad and Ritter, 2019), the mobilized audience can attempt to bring the targeted state back to compliance.

The second condition is that the information revealed by the reporting mechanisms is either previously unknown to its audience, or the cost of obtaining such information is prohibitively high. This condition, moreover, has two further implications. On the one hand, even when an audience has the

motivation to discipline noncompliance, going after another state often comes with a price. Collecting information on noncompliance is often costly, time-consuming, and requires a certain level of specialized expertise (Chayes and Chayes, 1998). In addition, confronting a state about its potential wrongdoings can cause damage to diplomatic ties or even cause backlashes (Terman, 2023), which may be further amplified if the information is perceived to be partial or politically charged (Thompson, 2006; Pelc, 2010). On the other hand, if the audience can obtain information on noncompliance without the help of the IO, then one should expect the audience to invoke the aforementioned channels and seek to rectify violations on their own, rendering the intervention of the IO superficial. In sum, reporting mechanisms work only when they make a new piece of information easily accessible to an attentive audience, who has the means to alter the decisions made by the targeted state. To evaluate whether in the particular case of the ILO, IO reports attracts external attentions, I present descriptive evidence in Appendix A.5 and show that ILO reports are cyclically mentioned in news media and are meaningfully represented in political elites' discourse.

Given these conditions, how does the design of such mechanisms shape their effectiveness? Holding the organizational context fixed, the potential audiences of reporting mechanisms are largely similar, as the documents compiled through reporting mechanisms are usually disseminated at the IO level, often via a centralized outlet or public forum.<sup>6</sup> The reports produced by the CEACR and the CFA are both circulated to all member states during the ILO annual meeting, the International Labor Conference<sup>7</sup> (ILC) and is reviewed and adopted by the member states during the conference (ILO, 2019). In addition, these mechanisms greatly reduce the cost of information collection by replacing numerous bilateral exchanges with one multilateral clearinghouse (Lall, 2017; Carnegie and Carson, 2019). Their technical expertise also lends credence to the quality of information contained in their reports (Green, 2013), and instead of simply blaming the target state for failing to uphold its international commitments, they can offer informed recommendations on how to remedy the situa-

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<sup>6</sup>For example, within the IAEA, the aforementioned Nuclear Safety Review, the organization also issues various other annual reports such as the Nuclear Security Review and the Nuclear Technology Review, all of which are published by the office of the Director General "in response to requests by member states" (IAEA, 2021, p.3).

<sup>7</sup>The ILC is an annual Conference that brings together governments', workers' and employer's delegates of the ILO member states to establish and adopt international labor standards. It is also a forum for discussion of key social and labor questions. It is often referred to as an "international parliament of labor".

tion. Theoretically, therefore, the variation in reporting mechanisms, if any, should come from their ability to generate new information that can mobilize the intended audience. In particular, I argue that member states within an IO are the most likely group of actors to be mobilized by reporting mechanisms, as they usually receive the reports firsthand and are given a social forum to discuss and react to the content within these reports.

The character of the information that circulates is critical for understanding how IOs convert monitoring into compliance leverage. Do monitoring mechanisms actually differ in their ability to generate information that is new to their member states? I argue that the availability of channels that permit third-party actors to supply information to the IO makes fire alarms more effective in changing member-state compliant behaviors than police patrols. When third-party submissions are formally incorporated into a review process, member states delegates do not simply receive a thicker dossier; they gain access to qualitatively different evidence: on-the-ground accounts of policy implementation, budget allocations, and bureaucratic workarounds that rarely appear in state self-reports (Mitchell, 1994; Kelley, 2004).

In addition to providing more concrete information, third-party actors are also incentivized to demonstrate the credibility of their information. Unlike member states, whose participation in international monitoring is itself an observable marker of compliance, third-party actors such as NGOs and domestic interest groups derive influence primarily from their reputation and credibility inside and outside the IO. Their continued access and impact hinge on being seen as accurate and reliable (Grant and Keohane, 2005; Hafner-Burton, 2008; Tallberg et al., 2018). Conversely, overstated or misreported claims reduce future credibility and expose them to increased risk of future victimization. Therefore, they have strong incentives to document infractions rigorously and to support their claims with corroborating sources, thereby reducing informational asymmetries between the IO and the monitored government (Dai, 2007; Carpenter, 2011).<sup>8</sup>

Once these detailed observations are disseminated and made visible to external audience, they trigger two mutually reinforcing channels for compliance. First, specific allegations of malpractice

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<sup>8</sup>In fact, among over 3,000 complaints unions, employers, and NGOs have brought to the ILO alleging states' violation of collective labor rights, only less than 5% of the complaints are concluded due to "inadequate evidence".

give peer states focal points around which to coordinate economic and social pressure, increasing the prospective audience costs for non-compliers (Tallberg, 2002; Murdie, 2014). Second, granular descriptions of successful (and failed) policy implementations provide a concrete basis for learning and critiques, allowing IOs and like-minded governments to make tailored suggestions on how to close compliance gaps (Abbott, Green and Keohane, 2016). As a result, third-party participation equips IO reports to target not only the formal misalignment of domestic law with international rules but also the behavioral practices that land those rules on the ground. In contrast, in procedures that exclude third-party submissions of information, IO and fellow states are left to debate a thinner set of evidentiary records curated by the target state itself. Thus, the discussion is more likely to revolve around legislative or institutional reforms on paper, limiting the scope of genuine behavioral adjustment.

The above discussion of how third-party actors' information provision lead international actors to pressure their government shares theoretical affinity to the "boomerang model" proposed by Keck and Sikkink (1998). More recently, works by Pérez-Liñán and Atehortúa (2024) argue similarly for the effectiveness of third-party engagement in "dialogic oversight". By bringing in the variation in reporting mechanism designs, however, I contend that third-party actor participation is itself a result of institutional choice IOs make. Instead of simply broadcasting the information supplied to them, monitoring mechanisms also investigate, evaluate, and synthesize. This active process of IO involvement thus imbues the information with more neutrality and legitimacy (Abbott and Snidal, 1998; Pelc, 2010).

Moreover, the channel between domestic groups and international institutions is not always open, not only because of the hindrance from the home government but also because of the structure of IOs. Since the monitoring mechanisms that adopt a police patrol strategy have few alternative sources of information to check against the self-reports made by states themselves, whenever states come under the scrutiny of police patrol, they are only incentivized to make changes that are visible and can thus be verified by IOs without the input from third-party actors. These changes, therefore, often take place on an institutional level, like policy documents, legislation, executive announcements, etc. In contrast, when a reporting mechanism adopts a fire alarm strategy, it receives additional information

with which it can both gain insights into the empirical practice of the target and direct the attention of the audience states to the gap between institutions and behaviors. Thus, I hypothesize that, controlling for other confounders, police patrol reports are only effective in improving a state's institutional compliance, whereas fire alarm reports can lead to both institutional and behavioral compliance.

To summarize, Figure 1 provides a stylized representation of the heterogeneous effects of different reporting mechanisms. Given this theoretical framework, the ILO provides an ideal organizational context for further empirical analysis for several reasons: the ILO has a long history of using reports to engage and nudge states to fulfill their obligations towards labor. It established numerous committees that serve the role of reporting mechanisms. In particular, the two committees examined in this paper (the CEACR and the CFA) are tasked with monitoring the standards of collective labor rights in member states through the collection of different types of compliance information, thereby providing a controlled comparison between the two types of reporting mechanisms. In the last part of this section, therefore, I provide a brief overview on the institutional contexts of these committees, how they function, and the roles they play in the ILO.

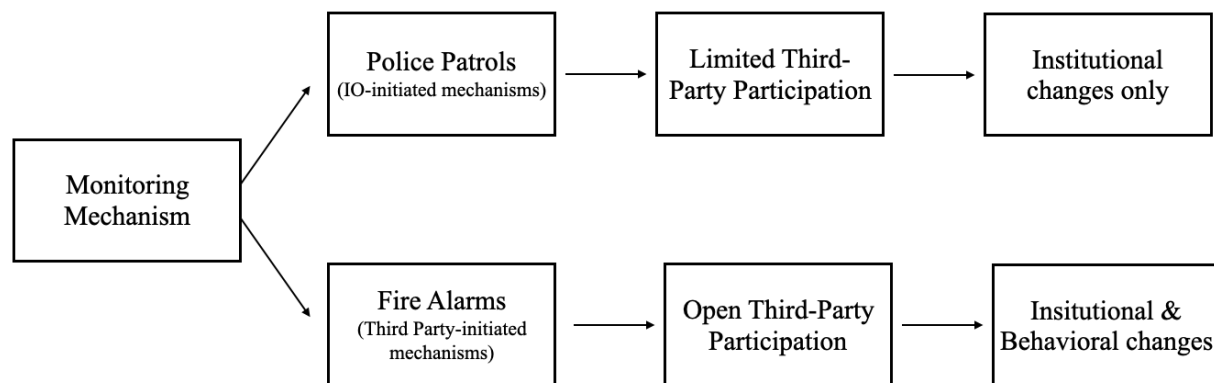


Figure 1: The variation in the effects of reporting mechanisms

## 2.3 Reporting Mechanisms in the ILO

As one of the oldest IOs in the world, the ILO has accumulated a rich record in labor rights promotion. Currently, the organization has 187 member states, numerous employers' and workers' NGOs sitting as tripartite members (Thomann, 2008), and governs nearly 200 active conventions, among which 10 are considered as fundamental.<sup>9</sup> Taken together, the ten fundamental conventions form the five major pillars – collective labor rights, the elimination of forced labor, the elimination of child labor, the eradication of discrimination, and workplace health and safety protections – to which the ILO directs most of its efforts of monitoring and reporting.

In order to monitor the wide range of treaty compliance, the ILO delegates a committee to supervise compliance among member states that have ratified the related conventions: the Committee of Experts on the Application of Conventions and Recommendations (CEACR). The CEACR is composed of 20 jurists appointed by the ILO governing body for three-year terms. Every three years, the CEACR issues a questionnaire to governments, asking them to detail the steps they have taken in law and practice for the fundamental conventions that they have ratified.<sup>10</sup> After the CEACR receives the completed questionnaire from the government, it reviews the materials and requests further clarifications when necessary. At the end of the review process, the CEACR publishes a series of observations in its annual report, flagging countries that failed to submit reports or comply with the committee's requests. These reports are then disseminated at the annual International Labor Conference in both plenary and specialized meetings, further drawing attention to the non-compliant countries in the public forum of ILC via "shortlisting" (Koliev and Lebovic, 2018, p.438).<sup>11</sup> This practice of naming-

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<sup>9</sup>The 110th International Labor Conference in 2022 adopted a resolution to add the principle of a safe and healthy working environment to the International Labour Organization's (ILO) Fundamental Principles and Rights at Work, elevating the Occupational Safety and Health Convention, 1981 (No. 155) and the Promotional Framework for Occupational Safety and Health Convention, 2006 (No. 187) to the status of fundamental conventions, along with the existing eight: Forced Labour Convention, 1930 (No. 29); Freedom of Association and Protection of the Right to Organise Convention, 1948 (No. 87); Right to Organise and Collective Bargaining Convention, 1949 (No. 98); Equal Remuneration Convention, 1951 (No. 100); Abolition of Forced Labour Convention, 1957 (No. 105); Discrimination (Employment and Occupation) Convention, 1958 (No. 111); Minimum Age Convention, 1973 (No. 138); Worst Forms of Child Labour Convention, 1999 (No. 182).

<sup>10</sup>The report schedule for regular (non-fundamental) conventions is every six years

<sup>11</sup>In particular, a conference committee – the Committee on the Application of Standards – engages in detailed discussions of countries performance based on the CEACR reports through multiple sittings

and-shaming, moreover, is only terminated when the CEACR deems the member states in question have made sufficient efforts in compliance and retracts its request or observation.

The CEACR thus constitutes an *IO initiated* reporting mechanism that investigates countries' compliance records for the conventions they previously committed to on a yearly basis. It centralizes the current status and incremental changes of states' legal institutions. Moreover, the reports also provide novel evaluations made by legal experts on states' labor codes and policies, whether there exists a gap between these institutions and the international standards states have committed themselves to, and suggestions on what steps states can take to reduce or close the gap.

Within the context of the CEACR, a handful of studies have found that this institution is effective through both the channels of reputation and reciprocity. For instance, the reports regularly update the list of conventions newly adopted by member states each year. [Baccini and Koenig-Archibugi \(2014\)](#) find that states are more likely to ratify the ILO conventions when they learn that their economic partners have ratified the conventions, alleviating fears of becoming less competitive in attracting foreign investments or in selling to export markets. Moreover, treaty ratification also becomes more likely when a country's peers, measured as the number of co-memberships in other IOs, ratify conventions as it generates a desire for the country to identify with its in-groups. [Kahn-Nisser \(2014\)](#) similarly argues that CEACR reviews generate considerable reputational concerns among EU accession countries. More recently, [Koliev, Sommerer and Tallberg \(2021\)](#) posit that the effects of reciprocity and social identity are empirically complementary in guiding member states' behaviors. Although not distinguishing the institutional and behavioral aspects of labor rights improvements, the authors' comprehensive analysis shows that ILO reports and the ensuing naming-and-shaming that expose treaty violations reduce severe labor rights restrictions.

While the CEACR plays a crucial role in monitoring member states' compliance, there exist two major limitations that restrict the scope of their reports. Firstly, member states are only required to submit information on compliance regarding the conventions they have already ratified.<sup>12</sup> Secondly, there exist very few channels for non-state actors' participation. Although interest groups

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<sup>12</sup>As an example, Section [A.1](#) documents the self-report obligation as stipulated by the Convention on the Freedom of Association (No.87)



such as trade unions and employers' associations may be consulted before the government submits the questionnaire to the CEACR, the ability of these associations to participate in the review process is stringently restricted in three ways: First, they must be representative at the national level. Second, states can elect to not go through the consultation step at all. Lastly, states can choose which associations they want to consult, as well as the scope of the consultation (ILO, 2019, p.14). Given these restrictions, the ILO "came to the conclusion that the principle of freedom of association needed a further supervisory procedure to ensure compliance with it in countries that had not ratified the relevant Conventions" (Curtis, Wolfson et al., 2022, p.123). In 1951, therefore, member states voted to establish the Committee on the Freedom of Association (CFA) to further monitor states' performance regarding one of the foundational labor rights: collective labor rights.

Unlike the CEACR, the CFA embodies a *third-party initiated* mechanism which receives and accepts complaints against member states *regardless* of their ratification status on collective labor rights conventions. Created in 1951, The CFA is tasked to examine complaints of alleged violations of freedom of association. Complaints may be brought against a member state by another member state, by its national unions and employers' associations, or by INGOs like the International Trade Union Confederation and International Organisation of Employers. Complaints also do not need to seek states' approval before filing the complaints, and in the cases where national-level associations are not independent of state controls, the CFA also accepts complaints brought by local-level associations. Once the CFA decides to take up a complaint, it then requests clarifications from the defendant state before reporting and recommending to the Governing Body whether and what necessary steps should be taken to remedy the violation. For instance, in a recent complaint alleging the extralegal arrests of Chinese labor activists (Complaint no.3184), the CFA requested –with partial success – the Chinese government to transmit records of judicial documents in reaction to the government's defense that the arrests were made on bases other than labor protests.

In the rest of this article, I restrict the empirical analysis to collective labor rights, which are among the most fundamental rights promoted by the ILO. As a result, the focus on collective labor rights is a standard practice in the literature on labor politics (Mosley, 2011; Marx, Soares and Van Acker, 2015;

Koliev, Sommerer and Tallberg, 2021), and makes the reports complied by the CEACR and the CFA more comparable. Given the function carried out by each of the reporting mechanisms discussed in this section, the observable implications with regard to the ILO can be hypothesized as follows:

*H1a: IO initiated reports (CEACR) lead to institutional improvements of collective labor rights in member states*

*H1b: IO initiated reports do not lead to behavioral improvements of collective labor rights in member states*

*H2a: Third-party initiated reports (CFA) lead to institutional improvements of collective labor rights in member states*

*H2b: Third-party initiated reports lead to behavioral improvements of collective labor rights in member states*

### **3 Estimating the Effects of ILO Monitoring**

#### **3.1 Measuring the Collective Rights of Labor**

To capture changes in the rights of domestic workers, this paper focuses on one of the most fundamental indicators: the collective rights of labor, which are constituted by two conceptual pillars: freedom of association and the right to collective bargaining. In the late 1940s, the ILO instituted two conventions that established workers' collective rights as one of the organization's fundamental principles: Freedom of Association and Protection of the Right to Organize Convention (known as Convention 87), and Right to Organize and Collective Bargaining Convention (known as Convention 89).

To measure the quality of collective labor rights, I use the Freedom of Association and Collective Bargaining (FACB) dataset, which is first assembled by Kucera (2002, 2007) and later extended by Mosley (2011) and Marx, Soares and Van Acker (2015). The main outcome of interest – “the collective labor rights score” – measures the quality of cross-country collective rights of labor from 1985 to 2012, which represents the most comprehensive panel data on cross-national labor rights. Each

country receives an annual score based on the content analysis of a wide range of sources to minimize bias and possible omission from specific sources: the annual Human Rights Reports by the US State Department, the ILO reports, and the International Trade Union Confederation's (ITUC) Annual Reports on the Violation of Trade Union Rights.

The score is composed of 37 criteria evaluating either institutional or behavioral violations of the rights stipulated by Convention No. 87 and 98. Violations on each of the 37 criteria are measured as a dummy variable which equals one if the above-mentioned sources document at least one violation for a country during a given year, and zero otherwise. The final score is a weighted sum of all dummy variables, with each weight corresponding to the relative importance of that criterion (e.g., general prohibitions of unionization weigh 10, whereas authorization requirements for joining a union weigh 1) and reserved so that higher scores indicate better protection for labor rights.

Among the 37 criteria that constitute the FACB index, the overall score can also be further divided into two sub-categories: 21 criteria measure the *legal* elements of the collective labor rights score. The other 16 measure the *practical* elements of the collective labor rights score. This coding method separates the recorded legal rights from the observance of rights in practice (Kucera, 2007; Mosley, 2011)<sup>13</sup>, making the resulting scores more finely-grained and flexible than other commonly used indicators of labor rights such as the Freedom House or the CIRI indices.<sup>14</sup> In addition, the FACB index also provide more temporal coverage than other labor rights index. I utilize these two measurements to reflect the institutional and behavioral compliance states demonstrate with respect to their domestic labor rights, as previously specified in the hypotheses. Figure 2 provides the descriptive trends in the FACB index over time for selected countries and groups.

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<sup>13</sup>In the original dataset, Kucera (2002) and Mosley (2011) uses the term *legal* to refer to the institutional protection a country provide to labor rights; in contrast, the term *practical* is used to denote the extent to which behavioral violation of labor rights is observed within that country. Table A.1 and table A.2 list the rubric used to compute the FACB index

<sup>14</sup>The Freedom House index is a five-point scale from "most repressive" to "free" (House, 2010). The CIRI index for labor rights is a three-point scale from "severely restricted" to "fully protected" (Cingranelli, Richards and Clay, 2014)

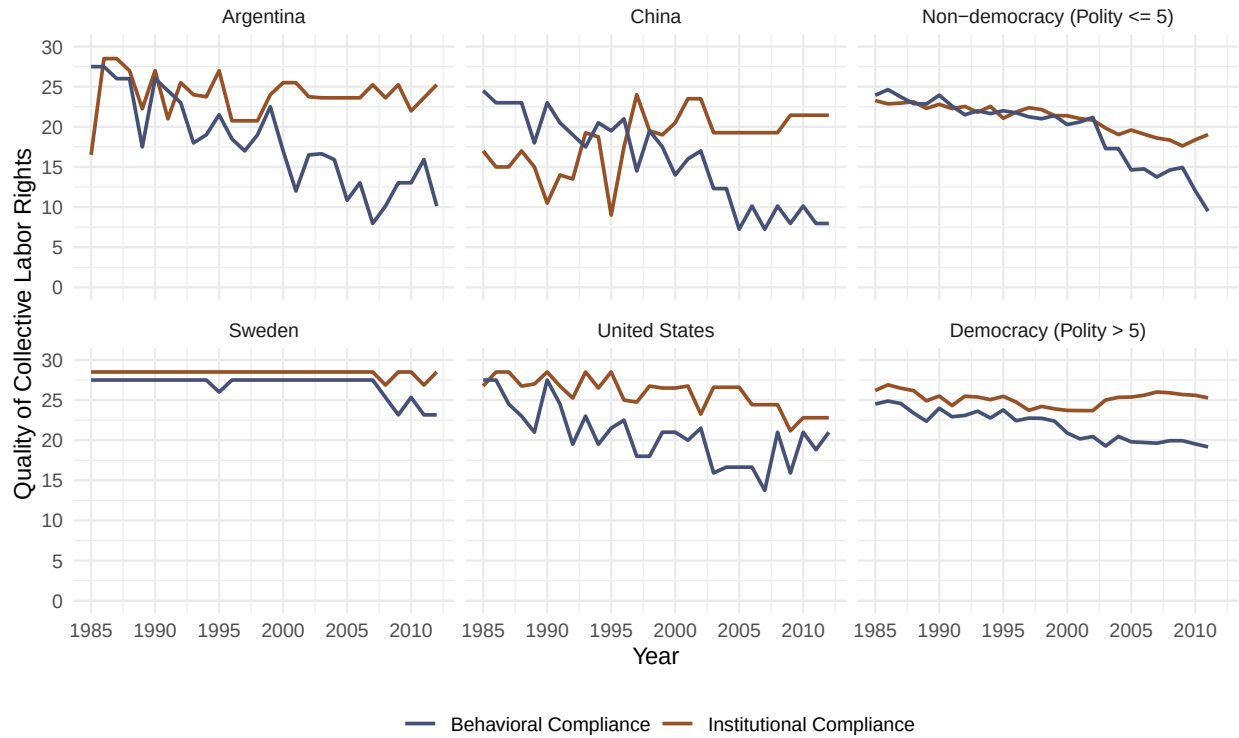


Figure 2: Collective Labor Rights Indices of selected countries and groups

### 3.2 IO-initiated Mechanism: CEACR Reports

To measure the effect of CEACR reports, I adopt a dummy variable that indicates whether a member state has ratified the conventions that protect the collective rights of labor: ratification of both Convention No. 87 and No. 98. I argue that this variable is an appropriate treatment proxy to states' exposure to the police patrol mechanism in the ILO. First, the CEACR only reviews information submitted by member states on their ratified conventions. Ratifying these two fundamental conventions, therefore, subjects the states to the supervisory procedure in the two committees.<sup>15</sup> Second, these reports provide a summary of otherwise scattered and technical information regarding member states' domestic labor codes and policies, contain evaluations and recommendations made by legal experts, and are publicized and discussed in plenary meetings during the ILC by participants from all coun-

<sup>15</sup>While this treatment assignment proxies the timing of CEACR's monitoring efforts, one may worry about such design leading to selection into treatment: countries with better domestic labor standards are may be more likely to ratify these international conventions. I detail the steps I take to alleviate this concern via both the research design below and robustness checks in Section 4.1.

tries. These reports, as a result, become a focal point from which states learn about how each other is providing legal protections to workers, exchange suggestions and sentiments about learned labor violations, and make commitments on future changes and improvements.

After a member state ratifies a convention, the committees issue a *detailed* report form for the state to fill out as stipulated by article 22 of the ILO constitution. After the initial round of detailed reporting as described in section 2.3, the state is further expected to report, often in simplified form, updates to their efforts made in compliance with the ratified convention at a three-year interval. It should be noted that, while the principles of collective rights have long been formulated and advocated, there remain significant variations in the reception of these values. Among the ten fundamental conventions, Conventions No. 87 and 98 are the least-ratified two. Between 1985-2012, only 59% of country-year observations have ratified the former, and 66% have ratified the latter. Jointly, the observations in which a state has ratified both conventions just about exceed 50%. A visual summary of countries' ratification history of the two conventions can be found in Figure A.4.

The hypothesized effect of CEACR reports, therefore, can be identified by comparing the institutional and behavioral compliance of states that ratify the two conventions with those that have yet to do so, which are used to construct the counterfactuals, across each period. Thus, I use an augmented difference-in-differences model (Imai, Kim and Wang, 2021) to estimate the effect of reports on collective labor rights. This method allows for both staggered adoptions of treatment over time and the inclusion of a set of prespecified matching covariates, which allows researchers to mitigate selections into treatment by including theoretically informed covariates based on their substantive knowledge. Formally, the model can be specified as:

$$\hat{\tau}(F, L) = \underbrace{\frac{1}{\sum_{i=1}^N \sum_{t=L+1}^{T-F} D_{it}}}_{\text{Average over all countries}} \sum_{i=1}^N \sum_{t=L+1}^{T-F} D_{it} \left\{ \underbrace{(Y_{i,t+F} - Y_{i,t-1}) - \sum_{i' \in M_{it}} (Y_{i',t+F} - Y_{i',t-1})}_{\text{country-specific estimate}} \right\}$$

Within the observed period, 23 out of 177 states (13%) become treated. For each member state that ratified both conventions, I first select a matched set of countries with identical treatment histories up to  $L = \{1, 2, 3, 4\}$  years prior to ratification. A matched set is then refined by removing countries

in the matched set with covariates and outcome histories that are highly dissimilar from the ratifying countries using Mahalanobis distance.<sup>16</sup> For each matched set, a difference-in-difference estimation is computed for each treated unit and then averaged across each year to estimate the average causal effect on the treated country (ATT).

Furthermore, I further include several matching covariates to increase the comparability between countries that have ratified conventions and those that haven't. First, I consider labor economic factors. I include GDP per capita, relative trade openness, FDI flows, debt ratio, and labor market participation rate (Przeworski et al., 2000; Mosley, 2011; Dean, 2022). The second set of matching variables relates to countries' socio-political conditions. Using the states' Varieties of Democracy (V-Dem) score during the observed period, I tried to capture the underlying connection between regime types and the protection of workers' rights. Additionally, I include several measurements on countries' human rights conditions: the number of domestic labor rights INGOs, the total number of ratified ILO conventions, and the Physical Integrity index (Cingranelli, Richards and Clay, 2014). Finally, to account for the spillover effects across international treaties (Baccini and Koenig-Archibugi, 2014), I include countries' ratification history of preferential trade agreements that include labor standard provisions (Dür, Baccini and Elsig, 2014). The summary statistics table for the matching covariates, as well as their sources, are included in section A.4.

### 3.3 Third-Party Initiated Mechanism: CFA Reports

To measure the effect of CFA reports on collective labor rights, I collected a set of original data that documents reporting activities regarding freedom of association complaints (FOAC) in the ILO. The CFA is a Governing Body committee and is composed of an independent chairperson and three representatives from the governments, employers, and workers. The main mandate of the CFA is to review FOACs submitted against any member states, set up tripartite meetings for each complaint, and compile reports after each meeting. FOAC is the most major complaint procedure that specializes

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<sup>16</sup>In addition, as Figure A.6 shows, pairwise matching maximizes balance between the treated units and their controlled set. Most of the covariates are well-balanced, with a standard mean difference between -0.25 to 0.25. This results in a total of 460 observations in the panel data.

in supervising and monitoring collective labor rights. Employers and trade unions – either national, foreign, or international – can submit a complaint to the CFA against member states in the ILO with allegations of violations of collective labor rights, regardless of the defendant country's ratification status on Conventions No.87 and 98 (ILO, 2018a). Once the complaint is received, the CFA would evaluate the specific allegations and decide if a case should be pursued further. For complaints that are taken up by the CFA, a tripartite dialogue with the government, employers, and workers is then established. The committee would seek additional information about the alleged violation from all parties involved. After the review process is completed, the CFA makes recommendations to the ILO secretariat on the appropriate remedies. Finally, the secretariat would assign the CFA with follow-up monitoring of the case.

The CFA monitoring process is one with high information intensity. Cases often remain active for multiple years and require multiple rounds of dialogues, information requests, and document submissions. While a complaint remains active, interim reports are often produced annually. During the period from 1985 to 2012, more than 1,000 FOACs were initiated. The average duration of each complaint is around two to three years, resulting in more than 3000 reports in total. These reports often feature multiple sources, ranging from various government departments, business associations, union representatives, and INGOs. In addition, much of the information contained in these reports was previously private to external observers. Figure 3 illustrates the total number of reports issued by the CFA pursued between 1985-2012. Dynamically, the total number of cases has increased over time, particularly in Latin America, as a result of both the ILO's field office initiatives (ILO, 2018a) and the economic transformation the region underwent starting in the 1980s (Dean, 2022). The period from 1985 to 2012, which is covered in the sample analysis, includes the bulk of freedom of association cases, as well as their reports.

For each country-year observation in the cross-sectional dataset, a value is assigned to the variable *Active Cases* based on the number of freedom of association complaints that meet the following conditions: (1) the complaint is filed to the CFA; (2) upon preliminary reviews, the CFA deems the complaint eligible for the initiation of freedom of association case, thereby setting up tripartite meet-

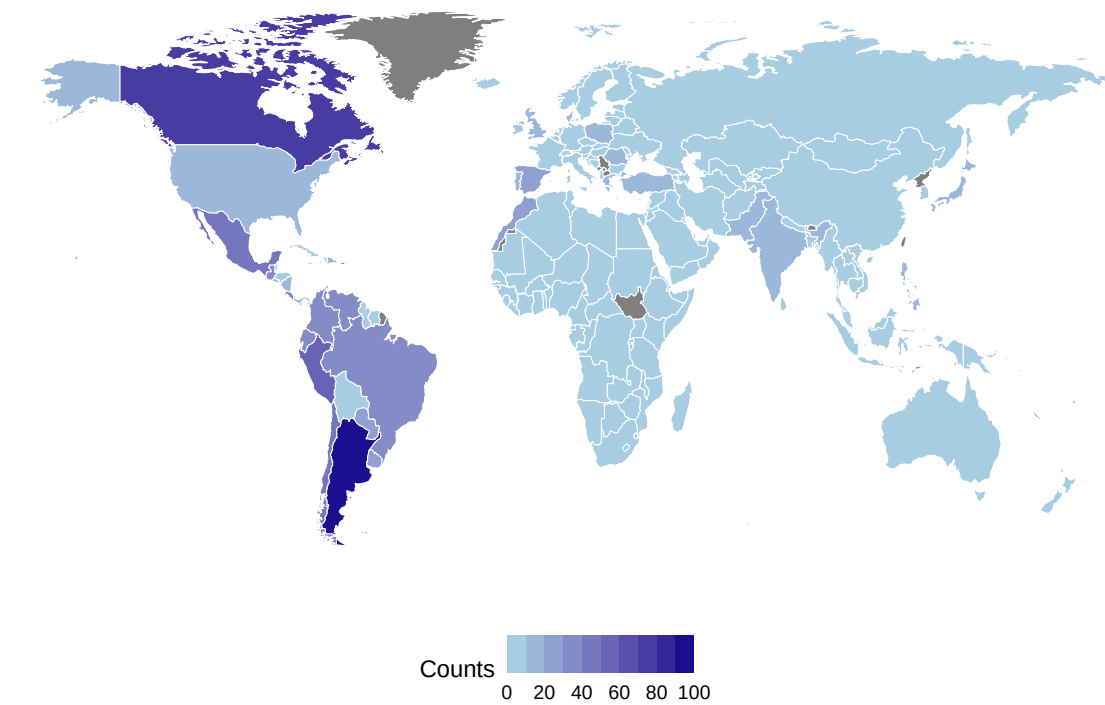


Figure 3: Cumulative sum of the number of reports issued by the Committee on Freedom of Association between 1985-2012, by countries.

ings during which the defendant state can submit its response; and (3) a report is produced regarding the alleged transgression. Given the continuous measurement of the main independent variable in this model, I adopt two-way fixed effects models to estimate the effects of CFA reports on collective labor rights. The models are formulated as follows:

$$\Delta Y_{it} = \beta_0 + \beta_1 \# \text{ NEW REPORT}_{i,t-1} + \sum_{i=2}^K \beta_k \Delta X_{itk} + \alpha_i + \gamma_t + \epsilon_{it}$$

In order to better capture the effect of CFA reports on improving governments' respect for labor rights, I use first-difference in which all variables are represented as incremental changes from time  $t-1$  to  $t$ . Thus,  $Y_{it}$  takes on two sets of metrics: the change in state  $i$ 's institutional respect for collective labor rights, measured by the legal elements in the FACB index; and the change in state  $i$ 's behavioral respect for collective labor rights, measured by the practical elements in the FACB index. Moreover,



for the main independent variable, the number of new reports on freedom of association reports produced on state  $i$ , is lagged by one year. The CFA meets three times a year and examines complaints lodged against governments and then presents the committee's suggestions for the Governing Body to approve (ILO, 2018b). As a result, the CFA often has a one-year turnover period before the first report is issued. Using a lagged measurement, therefore, alleviates the concern of observation bias. Finally, I adopt the same set of control variables as the ones used as matching covariates in the previous section, with the additional control of countries' ratification status of Convention No.87 and No.98.

## 4 Results

### 4.1 Institutional Changes of Respect for Labor Rights (H1)

To test the first set of hypotheses that exposure to police patrol mechanisms leads to institutional improvement ( $H_{1a}$ ) but not behavioral improvement ( $H_{1b}$ ) in states' respect for labor rights, I estimate a difference-in-difference estimator using the variables specified in the previous section.

Figure 4 reports the estimates of average treatment effects among treated units (ATT) of exposure to the IO-initiated reporting mechanism on countries' respect for labor rights with 95% confidence intervals ( $H_1$ ).  $t = 0$  indicates the first year that a country ratifies both Convention 87 and 98 and begins to be monitored by CEACR reports. In both panels, I plot the contemporaneous effects at  $t = 0$  and the persistent effects after the first report for 5 years (from  $t = 1$  to  $t = 5$ ). The shaded regions for periods prior to the time of ratification aim to detect anticipation effects and pre-trends. I use  $t = -1$  as the reference group and plot the estimated effects for up to 4 years before the first reports are issued ( $t = -2$  to  $t = -4$ ).

The results show overall empirical support for  $H1$ . The left panel shows a positive and significant treatment effect when comparing the trend of institutional compliance between the treated and controlled groups. Namely, exposure to the IO-centric reporting mechanism leads to a significant institutional improvement for labor rights by 0.15 - 0.2 standard error up to four years after a member state ratifies the conventions on collective labor rights and receives the first CEACR reports on collective labor rights. Substantively, this effect is similar in size to the difference in labor institutions between

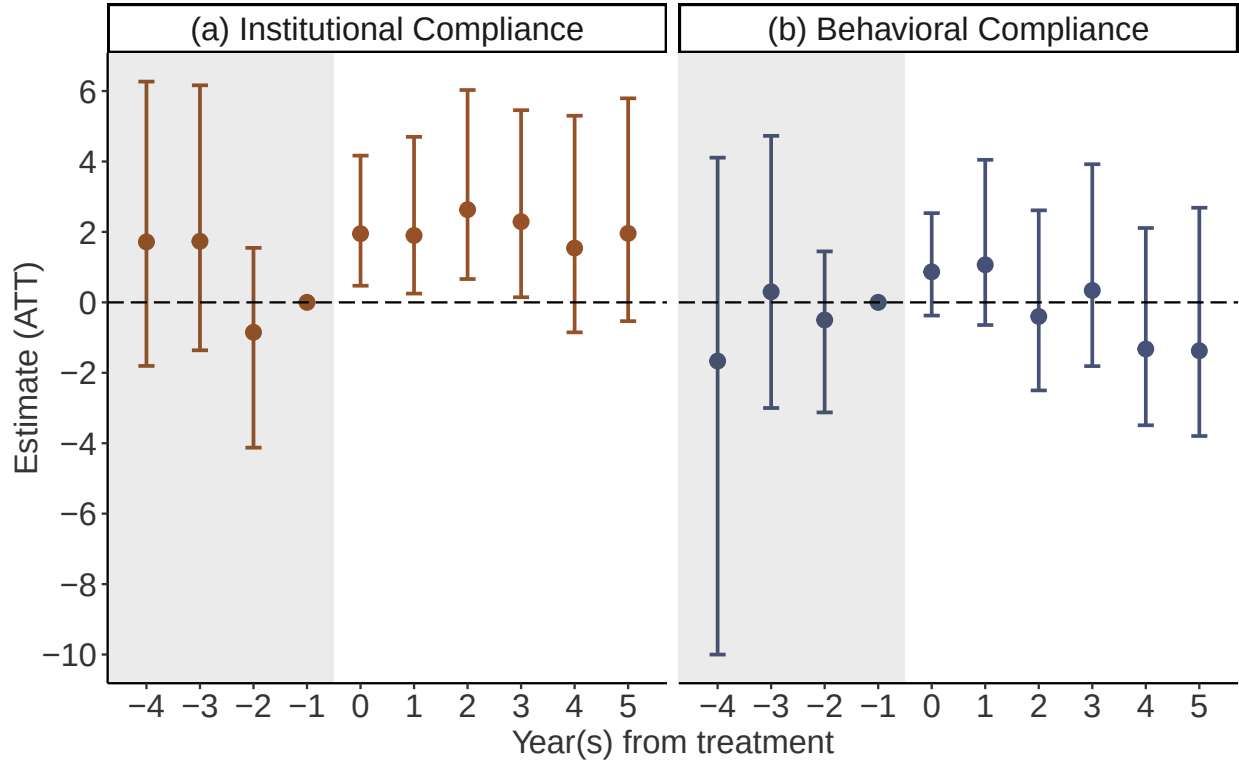


Figure 4: Effect of IO-initiated reports on member states' institutional (left) and behavioral (right) compliance of collective labor rights. The plot shows the ATT (average treated effects on the treated units) of exposure to the CEACR reporting mechanism on countries' collective labor index. The model uses mahalanobis matching and estimates 95% confidence intervals with 1000 bootstraps.

the US and Vietnam around 2000; within country, this effect corresponds to whether a country's labor codes excludes workers from industrial sectors from union membership or not (see Appendix A.2. It is also worth noting that while the point estimates remain positive, the effect becomes statistically indistinguishable from 0 starting from the fourth year, which is intuitively sensible as there should exist a ceiling in institutional compliance through domestic legislation on collective labor rights. In contrast, the right panel compares the trend of behavioral compliance between the treated and control groups. All point estimates are substantively close to zero and statistically insignificant in the post-treatment period. Thus, there is little evidence suggesting that behavioral improvements occur in states after they come under the monitoring of the CEACR reporting mechanism.

Finally, I discuss a potential threat to inference with respect to the parallel trend assumption,

which is critical to the difference-in-differences design. As noted above, the placebo tests for both institutional compliance and behavioral compliance returns statistically insignificant results. Moreover, the average point estimates for both outcomes in pre-treatment period are also substantively close to zero. Nevertheless, the two positive estimates for the institutional compliance outcome during  $t - 4$  and  $t - 3$  may raise potential worry that the treated and controlled countries differ systematically in their labor institutions prior to their exposure to CEACR reports. As countries ratify international treaties strategically, it may be that those who ratify the collective labor rights conventions early on already had a high level of labor standards. Moreover, countries which ratify early may be more morally committed to improve their labor rights, whereas those who ratify later have a stronger concern for economic competitiveness (Baccini and Koenig-Archibugi, 2014). To account for these potential scenarios, I removed the countries whose overall labor right index ranks among the top decile within the dataset and refit both models to the subset data. The results for this subgroup analysis, included in Figure A.7, return similar patterns to the main models, further alleviating concerns for parallel-trend violations.

## 4.2 Behavioral Changes of Respect for Labor Rights (H2)

For the second set of hypotheses, I estimate the effect of CFA reports using a two-way fixed effects model. The hypotheses posit that exposure to fire alarm mechanisms leads to both institutional improvement (H2a) and behavioral improvement (H2b) in states' respect for labor rights. Table 1 reports the results. Model (1) and (2) return the baseline results of the bivariate regressions (with fixed effects). Since Marx, Soares and Van Acker (2015) calculated the FACB index between 2003-2012 only for a subset of countries that are included in Mosley (2011), I further estimate two sets of models: one that contains the entire time period from 1985-2012 (Model 5 and 6) and one that excludes the decade between 2003-2012 (Model 3 and 4). The results provide consistent evidence supporting hypothesis  $H_{2a}$ . Additionally, after controlling for the aforementioned covariates, CFA reports are also a strong predictor for institutional improvements in states' respect for labor rights, in line with the expectation of  $H_{2b}$ , after including the control variables. Typically, a CFA complaints last around two to

three years; and since countries on average experienced around six complaints during 1985-2012, the substantive effects of CFA reports equal an institutional improvement by removing administrative authorization for workers to join or form unions, and a behavioral improvement by preventing employment to be conditional on non-membership in unions.

| DV:<br>Model:               | $\Delta$ institution<br>(1) | $\Delta$ behavior<br>(2) | $\Delta$ institution<br>(3) | $\Delta$ behavior<br>(4) | $\Delta$ institution<br>(5) | $\Delta$ behavior<br>(6) |
|-----------------------------|-----------------------------|--------------------------|-----------------------------|--------------------------|-----------------------------|--------------------------|
| <i>Variables</i>            |                             |                          |                             |                          |                             |                          |
| CFA Reports<br>(1 year lag) | 0.027<br>(0.035)            | 0.118***<br>(0.028)      | 0.151***<br>(0.048)         | 0.126**<br>(0.062)       | 0.070**<br>(0.032)          | 0.113***<br>(0.039)      |
| <i>Specification</i>        |                             |                          |                             |                          |                             |                          |
| Controls                    | No                          | No                       | Yes                         | Yes                      | Yes                         | Yes                      |
| Time Period                 | Full                        | Full                     | Restricted                  | Restricted               | Full                        | Full                     |
| Country FE                  | Yes                         | Yes                      | Yes                         | Yes                      | Yes                         | Yes                      |
| Year FE                     | Yes                         | Yes                      | Yes                         | Yes                      | Yes                         | Yes                      |
| Observations                | 2,756                       | 2,756                    | 1,398                       | 1,398                    | 1,790                       | 1,790                    |

*Robust standard-errors in parentheses are clustered at the country level*

*Signif. Codes: \*\*\*: 0.01, \*\*: 0.05, \*: 0.1*

Table 1: Regression results for the effects of CFA reports on labor rights improvements

To evaluate whether selection bias drives the results observed in Table 1, I conduct a robustness check similar to the subgroup analysis in  $H_1$ . Specifically, I remove countries whose average domestic labor rights over the period of observation are among the top decile and fit the subset data to the statistical models specified in the main analyses. This addresses the concern that robust domestic labor communities may generate more complaints through greater detection and mobilization capacity, not necessarily more violations. Excluding the countries that have highly permissive domestic labor environments, therefore, tightens common support for statistical comparison and makes complaint counts a closer proxy for noncompliance. Results in Table A.6 shows the analysis is robust to this subset analysis.

Similarly, another potential source of observational bias may stem from regional variation in ILO activities. As visualized in Figure 3, countries in the Latin American region receive substantively

larger amounts of CFA complaints. In part, this reflects the dynamic industrial relations in the region (Collier and Collier, 1991; Vergara, 2021). At the same time, however, it may generate worries about a relatively small set of hyperactive unions deriving the cross-national results. To alleviate such concern, I further specify a set of models including regional fixed effects. In addition, I also conduct a subgroup analysis by removing the Latin American region from the data. The results included in Table A.7 shows that the estimates remain comparable.

Finally, the two-way fixed effects models control for unobserved variables at the country and year level, and given appropriate assumptions, produce consistent estimations for the treatment effects that are equivalent to the weighted average of the baseline difference-in-differences estimates.<sup>17</sup> Here, a central assumption is that unobserved confounders that vary across unit and time do not substantively bias the estimation and give rise to spurious correlations. In order to test how likely this assumption holds in my applied setting, I adopt a sensitivity analysis proposed by Cinelli and Hazlett (2020). The purpose of the analysis is to assess how large a bias resulting from a potentially omitted variable would be necessary to explain away all of the effects attributed to the explanatory variable of interest, i.e., the CFA reports. Detailed discussion on the sensitivity can be found in section A.9 – in short, to account for the effect of CFA reports on institutional and behavioral improvements of labor rights, unobserved confounders need to explain more than 36% and 47% of the residual variance on each variable respectively.

### 4.3 Alternative Explanations

In this section, I address several rival explanations for the empirical results documented above. First, one may be concerned that the different effects of police patrol (CEACR) and fire alarm (CFA) reports stem not from the variation in their input process, but from how the reporting processes are initiated.

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<sup>17</sup>Recent developments in political methodology have revealed a drawback of TWFE models, which could assign negative weights to observed units when treatment adoption is staggered or when their effects are heterogeneous overtime, making the results difficult to interpret substantively (Imai and Kim, 2022; Goodman-Bacon, 2021). However, as a large reanalysis study by Chiu et al. (forthcoming) shows, negative weights occur at a far lower rate than violations of parallel trends in political science studies. As the independent variable of the CFA reports is measured continuously, the challenge of negative weights become less severe. Lastly, as countries often move in and out of different levels of exposure to CFA reports, staggered difference-in-differences design using a binary treatment is less suited under this setting.

Specifically, CEACR reports are released on a regular schedule after countries ratify the conventions, whereas CFA reports are generated only after a complaint is received. Therefore, to examine whether the *routine* versus *ad-hoc* report initiation causes the two reports to elicit different outcomes in compliance, I examine a downstream action taken by the CEACR in the reporting process: issuing direct requests for countries to supply further information. When the CEACR decides that the information submitted by states is insufficient to evaluate their treaty commitment, the committee can then issue a direct request to solicit further information from the member state.<sup>18</sup> These requests issued by the CEACR, therefore, constitute an ad-hoc report procedure that resembles the CFA reports. Thus, by comparing the effect of direct requests and CFA reports, we can evaluate whether the mode of report initiation explains the empirical patterns observed above. To do so, I collect all 1,651 direct requests the CEACR issued between 1985-2012 on Convention 87 and 98 through the ILO NORM-LEX database. The regression analysis in Appendix A.6 shows that within the police patrol process, ad hoc initiations of monitoring have little additional power to further compliance.

Next, I account for the potential collinearity between the measurements of CFA reports and the FACB index. As the CFA reports are used as one of the sources to identify potential labor violations across countries, an alternative explanation for the effect of CFA reports is that the independent and dependent variables merely co-vary mechanically. To address this concern, I obtained the criterion-level coding of labor violation for the 37 criteria compiled by Mosley and Uno (2007). The authors' source data documents which sources – ICFTU, US State Department, or ILO – are used in coding an observed violation in each labor standard criterion. I then removed all violations documented only in the ILO reports, recalculated the FACB index, and re-fitted model (3) and (4) in table 1 using the new index. As shown in Appendix A.6, for both models, the general result of improved compliance is still recovered, although the point estimates became marginally smaller. Notably, in the case of behavioral compliance, this resulted in a statistical significance at the 0.1 level. In sum, the overall pattern indicates that there is less concern for systemic collinearity. Moreover, while the reduction

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<sup>18</sup>Upon receiving the direct request, states have one year to respond before the release of next report, in which the committee will include follow-up comments based on the additional policy and legal instruments it received. Unlike other actions the CEACR can take, such as naming and shaming the state by issuing an observation of non-compliance, direct requests are more technical in nature, and its issuance depends on less political factors (Koliev and Lebovic, 2018).

in estimates implies that some categories of observed labor violations may depend more heavily on CFA reports than the other sources, it also points to the substantive importance of monitoring by the ILO.

#### 4.4 Motivating Case Selections

The empirical patterns presented above merit further discussion of several findings. To start, skeptics of international compliance may see policy reforms unaccompanied by behavioral changes as mere window-dressing. It is worth noting, however, that the effect of CEACP reports should not be interpreted as superficial, since these changes occur in states' domestic legal systems. While it is not uncommon that in many industrializing and democratizing (or less-than-democratic) countries, the governments do not live up to the standards dictated by their own laws (Marx, Soares and Van Acker, 2015), many have documented that opening up the judicial environment can lead to better compliance through activating mass mobilization and empowering domestic courts (Simmons, 2009; Conrad and Ritter, 2013). To illustrate how reporting mechanisms like the CEACR facilitate comprehensive reforms over labor legislation, I use Cambodia as a case study that further investigates the mechanism through which public reports affect meaningful compliance in the next section. Like many developing countries in the 1990s, Cambodia decided to further engage in international trade as a mean of economic development. The country, therefore, simultaneously sought to integrate deeper into the international economy and navigated the external demands of labor regulation, with the ILO's involvement being a crucial driver.

Next, the results detailed in table 1 in support of  $H_{2b}$  are unlikely to stem from estimation bias. First, results from the sensitivity analysis indicate that the effect of CFA reports on institutional improvements of labor rights is rather insensitive towards bias resulting from omitted variables. Second, and more substantively, the CFA has little leeway in selecting cases that might be easier to pursue, as the institutional rules of the ILO require the committee to take up all complaints as long as they are technically eligible. In fact, as the workload of the committee increases over time, it focuses on cases that "represent a systemic violation on a national level"<sup>19</sup>, rather than complaints that only contain

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<sup>19</sup>Interviews with John Ritchotte, senior labor relations and collective bargaining specialist, and Tim de Meyer, senior

isolated incidents. Therefore, to the extent that selection may occur when the CFA chooses which complaints to further pursue, these nationally representative cases should theoretically be the more difficult ones, thereby creating a downward bias. Accounting for the selection bias, therefore, would lead to a higher estimate that indicates CFA reports to be more effective in addressing institutional improvements. To further examine how CFA reports simultaneously tackle institutional and behavioral compliance and use them to facilitate improvements for collective labor rights, I look at the experience of China as a theoretically hard case, which had a long history of non-compliance in the ILO before facing the challenge of freedom of association complaints on both grounds.

## **5 Case Studies: Cambodia and China**

### **5.1 Cambodia and CEACR Reports**

Cambodia's interaction with the ILO, in particular, with the CEACR, reflects how a developing country navigate economic integration globally and labor standards domestically. Emerging from decades of civil conflicts and wars in the early 1990s, the new government of Cambodia was eager to participate in the global economy. Similar to many other Southeast Asian countries, Cambodia decided to develop its textile industry and became an exporter of apparel, as the sector requires an abundance of labor and relatively less capital investment. The comparative advantage of the country quickly attracts not only neighboring East Asian investors from Japan, South Korea, and Taiwan, but also multinational apparel companies from Europe and the US. The growth of the Cambodian textile industry, as a result, was spectacular: starting from only thousands of dollars in exports in 1990, export value skyrocketed to half a billion by the turn of the millennium.

The boom quickly drew attention from the global apparel trading system, which had been operating under a quota system since the 1960s (Polaski, 2006).<sup>20</sup> In 1998, the US government initiated negotiations with Cambodia to bring the latter into the quota system. The end product of the nego-

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specialist on international labor standards and labor law.

<sup>20</sup>The quota system sets limits on the textile and apparel products from any one country that can be sold in large, affluent markets like the US and Europe. When a country is not a party to the quota system, it is free to sell on these markets. However, these markets can also limit or completely cut off their access without consequence. The system was brought to an end by WTO negotiations in 2005.



tiations is a uniquely designed US-Cambodia Textile Agreement, which established quota limits on Cambodia's apparel exports to the United States in the coming three years, with the possibility of extension after the agreement concludes in 2001, conditional on Cambodia's substantial compliance with national labor laws and internationally agreed labor rights.

While interest groups in both countries recognized the value of the agreement, several concerns made implementing the trade deal difficult. To start with, the nascent regime of Cambodia was in the process of revamping the legal system inherited from its predecessor. Few national labor laws, therefore, could actually be applied to monitor compliance in the textile industry. Second, the government was also extremely limited in its bureaucratic capacity to carry out public monitoring.<sup>21</sup> Inspection by private monitors was also infeasible, as neither country was willing or able to pay the associated cost.

Faced with these challenges, the two governments turned to the ILO as an international monitor. Given the reporting mechanisms of the ILO and its familiarity with Cambodian labor law, the organization was well positioned for this role: The ILO's supervisory system would report the relevant information at a regular interval on Cambodia's compliance record, upon which bonus quota would be decided. In addition, the ILO had been closely involved with Cambodia's crafting of its new labor codes (Caraway, 2009), providing not only technical and legal assistance but also going so far as drafting an earlier script for the country's new labor code.<sup>22</sup> As such, a few months after the US-Cambodia Textile Agreement came into force on January 1st, 1999, Cambodia ratified Convention 87 and 98 simultaneously, opening itself up to the CEACR reporting mechanism.

Cambodia's ratification of Convention No. 87 and 98, therefore, provides an ideal case to illustrate the mechanism of the first set of hypotheses about the effects of IO-centric reports. Prior to the textile negotiations with the United States, the Cambodian government demonstrated little interest in joining either convention. In its correspondence to the ILO, the Cambodian government argued that the lack of specific legislation on freedom of association and collective bargaining, which the

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<sup>21</sup>According to IMF's statistics, the average wage for civil servants (\$28/month) in Cambodia at the time was a little over half of the minimum wage (\$45/month) in the textile industry (IMF 2003, p.9, see also Polaski 2006, p.921)

<sup>22</sup>Mission Report by Arturo Bronstein, ILO Regional Office for Asia and the Pacific, May 2-6, 1994. Accessed at the ILO Archive (Dossier No. ACD 49-158-3-119)

administration struggled to design due to a lack of expertise, means that the country would automatically be in non-compliance should it choose to sign on to the conventions (ILO, 1994a, p.128). Instead, the push to ratify mostly came from the need for a reliable source of information, so that the audience —in this case, the US — could learn about its compliance records with more ease. Indeed, the US proved to be attentive to the information provided by the ILO: In the US Department of State Country Reports of Human Rights for Cambodia, the section on workers' rights expanded significantly after 1999 – Importantly, direct references to ILO's reports on Cambodia more than quadrupled over a ten-year window between 1995-2005.<sup>23</sup>

To estimate the effects of Cambodia's exposure to IO-centric reports, I use synthetic control to generate a counterfactual control group (Abadie and Gardeazabal, 2003; Abadie, Diamond and Hainmueller, 2010). The units within the control group receive weights based on their similarity along pre-specified covariates to the treated unit such that pre-treatment outcomes and covariates closely resemble that of the treated unit. In this case, Cambodia received the treatment in 1999, and the control group consisted of countries that ratified neither convention between 1985-2002. I use the same set of covariates used in the event study, with an additional covariate indicating if a country is a neighboring Asian country.<sup>24</sup> Figure 5 presents the result from synthetic control. After 1999, institutional respect for labor rights in Cambodia increased substantially over the control group, with an annual average of 6.76. In comparison, there is no discernible pattern for the behavioral respect for labor rights: While the point estimate for Cambodia is smaller than the control group, the difference between the two remains indistinguishable from 0 across the post-treatment period.

To account for the alternative explanation that the increase in institutional compliance is caused only by the US's pressure from trade linkage, I conduct a placebo test using Canada and Mexico's respect for labor rights after the North America Free Trade Agreement (NAFTA) came into force in 1994. Similar to the US-Cambodia textile agreement, NAFTA also included provisions on labor standards in its side accord, the North American Agreement on Labor Cooperation (NAALC). Unlike

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<sup>23</sup>[https://1997-2001.state.gov/global/human\\_rights/hrp\\_reports\\_mainhp.html](https://1997-2001.state.gov/global/human_rights/hrp_reports_mainhp.html)

<sup>24</sup>These countries include Afghanistan, China, Mongolia, North Korea, South Korea, India, Bhutan, Pakistan, Bangladesh, Myanmar, Sri Lanka, Nepal, Thailand, Laos, Malaysia, Singapore, Philippines, Indonesia, and Fiji.

Cambodia, Canada and Mexico had only ratified Convention 87 decades prior – in 1972 and 1950 respectively – and neither countries ratified Convention 98. Moreover, the NAALC was not tied to international monitoring; rather, it obliged each country to enforce its own laws by establishing National Administrative Offices (NAOs) (Bierman and Gely, 1994). The synthetic control results in Appendix A.10 show that compared to Cambodia, which began to participate in the ILO monitoring process after the trade agreement, neither Canada nor Mexico showed improvement in institutional compliance after NAFTA.<sup>25</sup>

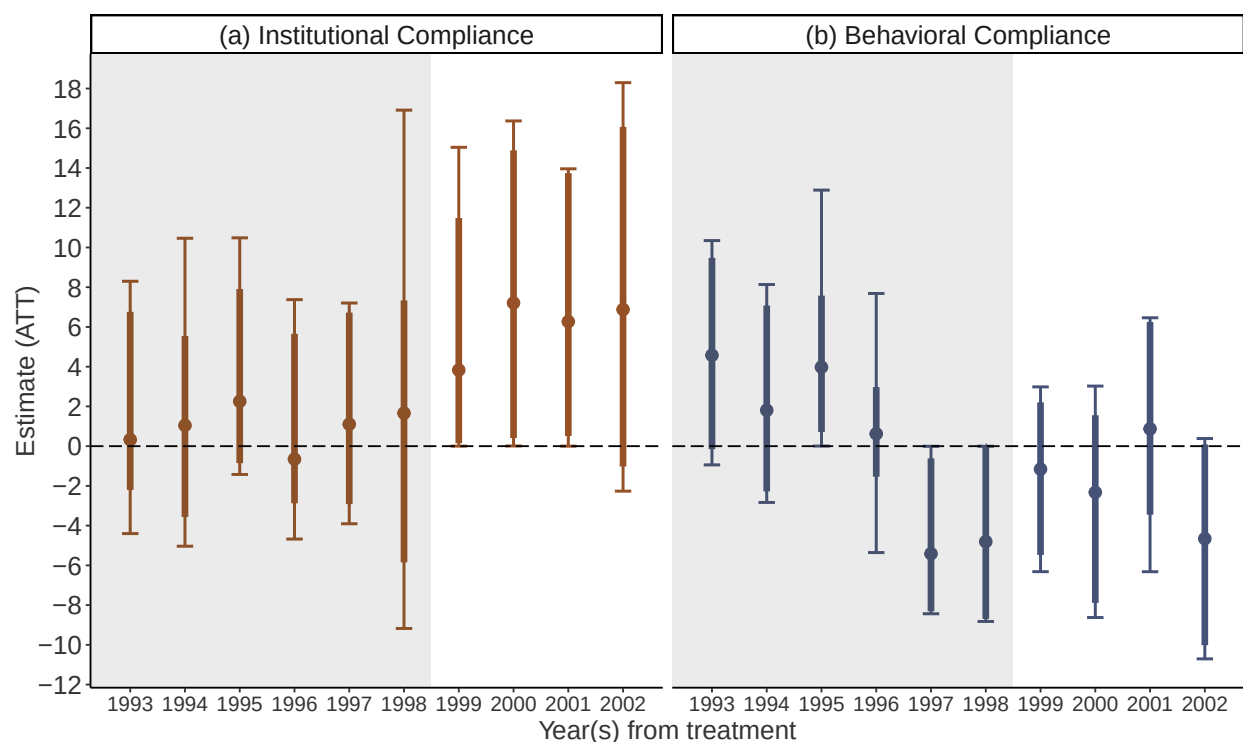


Figure 5: Synthetic controls of institutional (left) and behavioral (right) compliances of collective labor rights in Cambodia exposure to the IO-centric reports issued by the CEACR. The shaded area indicates pre-treatment years. The error bars denote 95% (thin) and 90% (thick) confidence intervals based on permutation tests.

Finally, qualitative evidence also aligns further with the quantitative results in showing Cambodia's diverging trends of institutional and behavioral compliance. Soon after ratifying the collective

<sup>25</sup>For example, Mexico, whose labor institutions were comparable to Cambodia's in early 1990s, made little efforts to revise its labor codes for collective labor rights after ratifying NAFTA, even after several cases were brought in front of the NAOs over union registration, union rights for state employees, and labor regulations in export zones (Samet, 2011).

labor rights conventions, the Cambodian government issued for the first time a legal decree specifically on workers' right to strike.<sup>26</sup> Furthermore, in 2001, Cambodia requested technical assistance from the ILO in order to revamp its 1994 Labor Code. The ILO drafted two additional decrees designed to facilitate the constitution of trade unions and collective bargaining at the enterprise level instead of the industrial level, as "the industrial relations in Cambodia were by far much more lively" in the former (Bronstein, 2005, p.365). With only minor changes to the texts, the Cambodian government quickly accepted both drafts and issued them in November 2001 (Bronstein, 2005).<sup>27</sup> By mid-2000s, Cambodia emerged as the country with the most protective labor laws in the region (Caraway, 2009). In comparison, the effect of the reports on the behavioral respect of collective labor rights appears muted. Violations of freedom of association and collective bargaining were still found on a number of occasions, and in several serious cases, resulted in freedom of association complaints.<sup>28</sup>

The case of Cambodia, therefore, crystallizes the mechanism through which CEACR reports improve institutional respect for labor rights. The legal expertise provided by the Committee of Experts not only enables it to identify non-compliance with labor laws of a target country but also to provide advice and coordinate assistance in cases where the country lacks the legal capacity to meet the standard of compliance.

## 5.2 China and CFA Reports

While Cambodia represents a typical experience for developing countries threading the delicate balance between seeking to enter the global market and satisfying the demands of international regulations, the case of China in the ILO provides a theoretically hard test for this article's second set of hypotheses. Until the last 15 years of the twentieth century, China experience had little to no interaction with the ILO. When the ILO reopened its floor to China, the latter replaced Taiwan's representation in the UN system in 1971, China became the only state in the ILO that did not apply for

<sup>26</sup>*Pakras on the Right to Strike* (No.5 MoSALVY), 2000.

<sup>27</sup>*Prakas on registration of professional organizations and certification of union representation* (No.16 MOSALVY), 2002; *Pakras on Labour Dispute Settlement* (No.12 MoSALVY), 2002.

<sup>28</sup>Case No 2318 (22-JAN-04), in which International Trade Union Confederation alleged the murder of two trade union leaders and continuing repression of unionists against the government of Cambodia.

its membership. In addition, since its accession to the organization, China has ratified only a handful of ILO conventions and has not signed any convention on collective labor rights. The historical aloofness of China in participating in the ILO thus to a great extent alleviates concerns of selection in attributing the effect of CFA reports on China's compliance records towards labor rights.

After regaining its seat in the ILO, China expressed little intention to fulfill its obligation as a member state. In fact, China did not send any delegation to the ILO until 1983, after extensive steps were taken by the ILO's Director-General, Francis Blanchard, who took three trips to China between 1980 and 1982 to negotiate with the government over China's participation in the ILO.<sup>29</sup> In exchange for China agreeing to fill the seat left vacant by Taiwan, the 1983 International Labor Conference moved to waive China's statutory contribution since 1971, which had accumulated to more than 37 million US dollars and nullified all conventions ratified by Taiwan since 1949.<sup>30</sup> In addition, the ILO channeled a substantial amount of resources to various technical cooperation projects in China, which frequently requested assistance in personnel training and collecting labor statistics.<sup>31</sup> In stark contrast, compliance on the China side remained low. Before 1989, it only ratified one convention (*Convention on the Vocational Rehabilitation and Employment*, No.159. Ratified in 1988). China was also slow in fulfilling its reporting obligations, citing the state's limited capacity. Until the end of the 1980s, China's attitude toward the ILO standards could perhaps be best summarized by the speech given by Guan Jinghe, China's representative to the ILO, during an ILO symposium in March 1989: "China is a big country... it is not possible to meet the requirement of the extensive application of ILO Conventions and recommendations".<sup>32</sup>

This dynamic between an engaged ILO and a distant China, however, took a dramatic turn in the aftermath of China's violent crackdown on mass protests in 1989. While the violent repressions were met with astonishment worldwide, only a handful of international actors directly took on the

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<sup>29</sup>Briefing: Mission of the Director General to China. Accessed in the ILO Archive (Dossier No. Z-3/265/BJ3)

<sup>30</sup>"China Takes I.L.O. Seat Vacant Since 1971", *The New York Times*, June 7, 1983.

<sup>31</sup>An official in the ILO Beijing Office once observed that, "each time there is a contact between the Chinese and [the ILO], some new proposal for technical co-operation emerges". Letter from S.K. Jain to A. Ahmad, 18/07/1984. Accessed in the ILO archive (Dossier No. Z-1/265/1 (J.6))

<sup>32</sup>*Report on the ILO Asian-Pacific Symposium on Standards-Related Topics: Country Paper on China*, re-cited from Kent (1997).

issue of labor repression: weeks after the violent repression had happened, complaints made by the International Confederation of Free Trade Union (ICFTU), the predecessor of ITUC, over the massive killing of workers reached the governing body of the ILO. For the first time since China gained its membership in the organization, it was challenged with an FOA complaint (No.1500) adopted by the CFA. Although faced with extremely defensive responses from China at first, the CFA officials eventually succeeded in convincing China that “noncompliance was more destructive of its reputation and sovereignty than cooperation” (Kent and Center, 2007, p.195). In the government’s official response to the ILO Office regarding the initiation of case 1500, Zhang Wei, the Director of Foreign Affairs in the Ministry of Labor, wrote that the committee “made some utterly unjustifiable requests [that] can not be accepted”, and that although the government “is making further analysis on those unfounded attacks and wrong viewpoints...[but] Frankly speaking, it is impossible for us to complete the work”.<sup>33</sup> In private, however, Zhang frequently contacted ILO personnel in Beijing and Geneva “asking what to do with case 1500”.<sup>34</sup> The ILO officials in Beijing advised the Ministry of Labor to “give information as much as possible replying to the queries made by the Committee of Freedom [of] Association. If the government remained silent, the Committee would draw its conclusions without taking the government’s view into account and that would certainly not be the intention of the government”.<sup>35</sup>

By the time case No.1500 closed in 1992, the Chinese government provided the names of more than 100 labor activists as well as the charges brought against them. The response given to the CFA constitutes the “most comprehensive response to date that the Chinese government supply to a foreign inquiry”.<sup>36</sup> This list was then obtained by Human Rights Watch and the ICFTU, and became the very first instance in which international observers learned how Chinese labor was impacted since June 1989. Swiftly disseminated to various INGOs and foreign governments, the information extracted by the ILO played an instrumental role in the release of many labor activists between 1989

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<sup>33</sup>Letter from Zhang Wei to Th. Sidibe, Director of the International Labour Standards Department, International Labor Office. Apr. 4, 1990. Accessed at the ILO Archive (Dossier No. ACD 49-158-3-265)

<sup>34</sup>Mission Report by S. Ago, Regional Adviser on International Labour Standards. No. 4/91. Accessed at the ILO Archive (Dossier No. ACD 7-119-87-98-1972/98)

<sup>35</sup>Ibid.

<sup>36</sup>*News from Asia Watch*, March 13, 1991. Accessed at the ILO Archive (Dossier No. ACD 49-158-3-265)

and 1992 (ILO, 1992).

Shortly after the conclusion of case No. 1500, a second case, No. 1652 against China was again initiated in the ILO in 1992 concerning China's newly passed Trade Union Law. This case is a clear example that the CFA helps to bring attention to countries' institutional compliance. Like the previous case, China's defensive position on non-interference was briefly resurrected but soon complied with demands made by the CFA reports to provide "detailed information on national law and practice concerning the settlement of labor disputes" (ILO, 1994b). While China defended its single union system in the Trade Union Law, it provided information on the purpose and process of the 1994 Labor Law, which was underway during this complaint. It marked the first entry of self-reported documents provided by China regarding the state's domestic legislation. By the time the case concluded in 1994, revisions had begun on the 1992 Trade Union Act. Moreover, the new Labor Law acknowledged ILO's definition of tripartitism in collective bargaining, as well as formally endorsing a list of collective labor rights (Kent, 1997, p.531).

Although the 1994 revision to the Trade Union Act made references to collective labor rights, they remained exclusive to urban workforces. Therefore, the effort to further engage China's treatment of migrant labor continues in the ILO. In 2005, the CFA concluded another case against the Chinese government regarding alleged union repression. While acknowledging the effort made the Chinese government in reporting the treatment of detained worker leaders, the committee further urged the government to keep it informed about the government's effort to address migrant workers' concern for "financial compensation, re-employment and investigation of management corruption" (ILO, 2005). Following this case, China ratified the fundamental convention on labor discrimination to "protect migrant workers from rural areas from discrimination", thereby ensuring the rural workers' freedom of "improv(ing) work conditions" (Tapiola, 2014, p.14). One year later, the State Council issued "Several opinions of the State Council on resolving problems of rural migrant labor". The most comprehensive policy document to date on migrant labor, it addressed a wide range of issues concerning migrant labor raised by the CFA in its recommendations.<sup>37</sup> Lastly, in 2007, the same language

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<sup>37</sup> Related policies include "low wages, wage arrears, discrimination, labor rights, job training, social protection, education, land rights, and *hukou* reform (Rho, 2023, p.63).

was adopted in the corpus of the new Labor Contract Law, confirming that “all individual workers have the right to negotiate their own written employment contracts with their employers, specifying terms, conditions, and benefits” (Donn and Zhao, 2016, p.258). Unlike the Labor Law of 1994, which was the central point of contention in the previous CFA complaint as it did not address labor rights of migrant workers, the Labor Contract Law of 2007 substantially increased geographical coverage and the level of local minimum wage, benefiting, in particular, migrant workers’ welfare and working conditions (Rho, 2023).

In sum, since 1989, China has increasingly complied with the ILO both institutionally and behaviorally. The ILO leveraged its third-party reporting mechanism to direct the attention of a global audience to the condition of Chinese workers. A major feature in the CFA’s institutional design is the national tripartite mechanisms, which bring the state into a social dialogue with workers and employers. The participation of these third party actors enables the committee to uncover novel information and use it to engage the state’s response. The participation of the target government, moreover, further amplifies the pressure and effect CFA reports can have on the behavioral changes of labor rights: Other international actors can not only obtain information on whether a state’s domestic behavior constitutes violations of collective labor rights, but can also observe the state’s capacity as well as intention towards compliance from the CFA reports.

## **6 Conclusion: Is the bad news about enforcement bad news about compliance?**

In their classic work, Downs, Rocke and Barsoom (1996) worried that the partial focus on compliance without building the necessary means of enforcement would harm the depth of international cooperation. This paper provides two rejoinders to their concerns: First, at the level of member states, concrete changes both in terms of institutions and behaviors can still occur even when the IO is not equipped with strong enforcement mechanisms. In particular, I find that reporting mechanisms under the organizational context of the ILO have a tangible influence on holding member states up to their international commitments. Nevertheless, the results documented in this paper add



to the growing literature that examines the efficacy of IO reports. International organizations do not just “function”, rather, they absorb members, hold conferences, conduct investigations, disseminate information, adjudicate litigations, etc. Therefore, instead of seeing compliance as a one-shot commitment that brings a country under some obligations in IOs, this paper argues that compliance is better seen as a tug-of-war that continuously monitors states’ performance. Compliance, in other words, is a dynamic process of engagement rather than an automatic process that is evenly applied to all members.

Second, IO reports work, but not equally. In particular, it matters how a report is made, and who participates in the report-compilation process. A key reason why reports can affect compliance is their ability to mobilize interested audiences, such as other member states in the IO, with novel information. Therefore, one should expect that reports containing more accurate information and solutions against violations would have great effects on compliance. The CEACR reports are able to improve states’ institutional respect for labor rights because they provide a focal point for other states to learn about a target country’s labor codes and policies. In the case of Cambodia, the reports made by legal experts staffing the committees frequently draw the attention of audience states like the US, which are invested in learning about the legal improvements made in Cambodia. Additionally, while the availability of data restricts the focus of this paper before 2012, recent anecdotes suggest that this mechanism through which ILO reports lead to compliance remains active. Similar to the experience of Cambodia, as countries face demands from economic partners to adopt higher levels of labor standards, they often turn to the ILO for advice on compliance. For example, after signing an FTA with the EU in 2019, the Vietnamese government contacted the ILO regarding the labor provision in the FTA. Drawing on its report and monitoring history on Vietnam, the ILO made extensive recommendations on how to adjust Vietnam’s union legislation to meet the requirement of the EU. As a result, Vietnam adopted its new labor code in 2021, recognizing for the first time the right of employees to set up their own representative organizations. Nevertheless, it should be noted that the virtual exclusion of third party actors in the entire mechanism greatly hinders its ability to observe the gap between a state’s law and practice and can therefore make few comments on how to remedy

behavioral violations of labor rights.

In comparison, the CFA reports allow for the participation of third party actors, notably business associations and trade unions, thereby further uncovering on-the-ground information that is scattered across various domestic actors. In the case of China, consistent international pressure from the ILO, taking the form of freedom of association complaints, are effective tools to extract information and, gradually, compliance from the deviant state. Importantly, while the CFA's focus on China initially starts with a high-profile event of labor suppression, its prescription on how to rectify labor abuse extends to the word of law. Even as China recently reinstated a hard line position towards labor disputes, the policy changes spurred on by international monitoring in the 1990s and 2000s had definitively transformed the landscape of state-labor relations, leading to a blossoming of both interest-based and right-based protests and significant improvement of labor standards among resourceful workers (Rho, 2023). In other words, compliance may not always be good news, but even without the aid of enforcement, it is still a good start for changes.

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## Appendix

### A.1 Questionnaire Items as Stipulated by Convention No. 87 (Excerpts)

| Item | Content                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |
|------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 1    | Please indicate whether effect is given to the Articles of the Convention: (a) by customary law or practice, or (b) by legislation. In the first alternative, please indicate how effect is given to the Articles of the Convention. In the second alternative, please give a list of the constitutional and legislative provisions or administrative or other regulations which give effect to the Articles of the Convention...                                                                                                                                                                                                                                                                                                                                          |
| 2    | <p>Please supply available information concerning the customary law, practice, legislative provisions and regulations and any other measures the effect of which is to ensure the application of each of the following Articles of the Convention. In addition, please provide any indication specifically requested below under individual Articles (omitted here)...</p> <p>If the Committee of Experts on the Application of Conventions and Recommendations or the Conference Committee on the Application of Standards has requested additional information or has made an observation on the measures adopted to apply the Convention, please supply the information asked for or indicate the action taken by your Government to settle the points in question.</p> |
| 3    | Article 11 of the Convention is as follows: Each Member of the International Labour Organisation for which this Convention is in force undertakes to take all necessary and appropriate measures to ensure that workers and employers may exercise freely the right to organise. <b>Please indicate the legislative or other measures taken to ensure the free exercise of the right to organise.</b>                                                                                                                                                                                                                                                                                                                                                                      |
| 4    | Please state whether courts of law or other tribunals have given decisions involving questions of principle relating to the application of the Convention. If so, please supply the text of these decisions.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |
| 5    | Please supply any general observations which may be considered useful with regard to the manner in which the Convention is applied.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |
| 6    | <p>Please indicate the representative organizations of employers and workers to which copies of the present report have been communicated...</p> <p>Please indicate whether you have received from the organizations of employers or workers concerned any observations... If so, please communicate the observations received, together with any comments that you consider useful.</p>                                                                                                                                                                                                                                                                                                                                                                                   |

## A.2 Scoring Rubrics for the FACB Index

| Item | Criterion                                                                   | Weight |
|------|-----------------------------------------------------------------------------|--------|
| 1    | General prohibitions of unionization                                        | 10     |
| 2    | Previous authorization required for unionization                            | 1.5    |
| 3    | Only workers' committees and labor councils permitted                       | 2      |
| 4    | Only state-sponsored or other single unions permitted                       | 1.5    |
| 5    | Exclusion of tradable/industrial sectors from union membership              | 2      |
| 6    | Exclusion of other sectors from union membership                            | 2      |
| 7    | No rights to form/join confederations of unions                             | 1.5    |
| 8    | Previous authorization requirements regarding Item 7                        | 1      |
| 9    | No rights to elect representatives in full freedom                          | 1.5    |
| 10   | No rights to establish union constitutions or rules                         | 1.5    |
| 11   | General prohibition of union participation in political activities          | 1.5    |
| 12   | General prohibitions of collective bargaining                               | 10     |
| 13   | Prior approval by authorities of collective agreements                      | 1.5    |
| 14   | Compulsory binding arbitration                                              | 1.5    |
| 15   | Exclusion of tradable/industrial sectors from right to collectively bargain | 1.75   |
| 16   | Exclusion of other sectors from right to collectively bargain               | 1.75   |
| 17   | General prohibitions of right to strike                                     | 2      |
| 18   | Previous authorization required prior to strike                             | 1.5    |
| 19   | Exclusion of tradable/industrial sectors from right to strike               | 1.5    |
| 20   | Exclusion of other sectors from right to strike                             | 1.5    |
| 21   | Restricted rights in export processing zones                                | 2      |

Table A.1: Labor Standards Coding Template for *Institutional* Compliance (Source: Kucera (2002); Mosley (2011); Marx, Soares and Van Acker (2015))

| Item | Criterion                                                                             | Weight |
|------|---------------------------------------------------------------------------------------|--------|
| 1    | Murder or disappearance of union members or organizers                                | 2      |
| 2    | Other violence against union members or organizers                                    | 2      |
| 3    | Arrest, detention, imprisonment, or forced exile for union membership or activities   | 2      |
| 4    | Interference with union rights of assembly, demonstration, free expression            | 2      |
| 5    | Seizure or destruction of union premises or property                                  | 2      |
| 6    | Exclusion of other sectors from union membership                                      | 2      |
| 7    | General absence of right to unionize resulting from socio-economic breakdown          | 10     |
| 8    | Employment conditional on non-membership in union                                     | 1.5    |
| 9    | Dismissal or suspension for union membership or activities                            | 1.5    |
| 10   | Interference of employers (attempts to dominate unions)                               | 1.5    |
| 11   | Dissolution or suspension of union by administrative authority                        | 2      |
| 12   | No union control of finances                                                          | 1.5    |
| 13   | Other specific de facto problems or acts of prohibition against unions                | 1.5    |
| 14   | Intervention of authorities in collective bargaining                                  | 1.5    |
| 15   | Other specific de facto problems or acts of prohibition against collective bargaining | 1.5    |
| 16   | Other specific de facto problems or acts of prohibition against strike                | 1.5    |

Table A.2: Labor Standards Coding Template for *Behavioral* Compliance (Source: Kucera (2002); Mosley (2011); Marx, Soares and Van Acker (2015))



### A.3 Chinese government response towards FOA Complaints

| Case #   | Years Active | Government Response                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |
|----------|--------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| No. 1500 | 1989 - 1992  | In its communication dated 28 September 1989, the Government states that the ICFTU's complaint alleging the violation of Convention No. 87 is <b>completely unfounded</b> and is a case of <b>blatant intervention in the internal affairs</b> of China, which the Government <b>cannot accept</b> .                                                                                                                                                                                                                                                                                                    |
| No. 1652 | 1992 - 1994  | In its communication of 19 October 1992, the Government stated that the accusations made against it <b>were unfounded</b> . This was <b>a serious case of interference</b> in the internal affairs of a sovereign State.                                                                                                                                                                                                                                                                                                                                                                                |
| No. 1819 | 1995-1997    | In a communication dated 13 October 1995, the Government indicates that <b>it has learned through investigations... The Government has nevertheless undertaken vast inquiries in respect of the allegations</b> made with the Minister of Public Security and the Minister of Justice, as well as with the All-China Federation of Trade Unions (ACFTU) and the cities and provinces of Beijing, Shanghai, Guangdong, Hunan and others.                                                                                                                                                                 |
| No. 2031 | 1999-2001    | In a communication dated 6 March 2000, the Government states that the complaint presented by the ICFTU alleging that the Chinese Government violated the principle of freedom of association is <b>completely unjustified</b> . <b>However, the Government, in a sincere attempt to cooperate fully with the ILO, undertook in-depth inquiries, in respect of the issues raised in the complaint</b> , with the Ministries of Public Security and Justice as well as with the All-China Federation of Trade Unions and the departments concerned of the Provinces of Shaanxi, Gansu, Sichuan and Hunan. |
| No. 2189 | 2002-2005    | The Government states that it has made an extensive investigation of related individuals and incidents, including visits to such relevant departments as the Ministries of Public Security, State Security and Judiciary Affairs, the ACFTU and local governments... <b>there should be no need for discussion by the Committee on Freedom of Association</b> . Nevertheless, <b>in the spirit of promoting cooperation and enhancing understanding</b> , the Government expresses its willingness to maintain dialogue with the Committee.                                                             |
| No. 3184 | 2016-present | By its communications dated 6 March and 26 April 2018, the Government informs that <b>a special investigation into the allegations in this case had been carried out</b> . With regard to the alleged cruel treatment of Mr Zeng and others during their detention, the investigation revealed that they were not subject to cruel treatment while in detention. The Government adds that the public security authority deals with cases <b>in strict conformity with the relevant legal provisions</b> and that the rights of those concerned were sufficiently guarded during the hearing process.    |

## A.4 Summary Statistics

|                           | mean  | sd    | median | min     | max    | source                    |
|---------------------------|-------|-------|--------|---------|--------|---------------------------|
| Respects for Labor Rights | 27.29 | 7.84  | 29.00  | 0.00    | 37.00  | FACB                      |
| Respects (Legal)          | 23.57 | 5.30  | 25.25  | 0.00    | 28.50  | FACB                      |
| Respects (Practical)      | 22.72 | 4.40  | 24.50  | 0.00    | 27.50  | FACB                      |
| Both Convention           | 0.62  | 0.48  | 1.00   | 0.00    | 1.00   | NORMLEX                   |
| Active FOAC               | 0.82  | 1.82  | 0.00   | 0.00    | 17.00  | NORMLEX                   |
| GDP per capita (logged)   | 8.15  | 1.55  | 8.10   | 4.89    | 11.49  | World Bank Database       |
| Polity2                   | 1.78  | 7.20  | 5.00   | -10.00  | 10.00  | Polity5 Project           |
| Physical Integrity Index  | 4.76  | 2.31  | 5.00   | 0.00    | 8.00   | CIRI                      |
| Labor Rights INGOs        | 17.16 | 10.80 | 16.00  | 0.00    | 58.00  | Peksen and Blanton (2017) |
| Population (logged)       | 15.96 | 1.56  | 15.94  | 12.36   | 21.02  | World Bank Database       |
| Trade volume (logged)     | 4.19  | 0.60  | 4.22   | -1.18   | 6.10   | IMF DOT                   |
| Net FDI inflow            | 3.07  | 7.67  | 1.46   | -161.24 | 172.72 | IMF DOT                   |
| External debt             | 5.42  | 6.73  | 3.81   | 0.00    | 135.38 | IMF DOT                   |

## A.5 Informational Uptake on ILO Monitoring

This section documents evidence showing that ILO’s reporting activities are received by external audience. As mentioned in Section 2.3, a crucial assumption for international monitoring to take effect is that the information contained in these reports is picked up by external audiences. I present two descriptive patterns supporting the plausibility of this assumption. First, I look at the media coverage of the ILO, which represents a major point of contact for outside observers with the ILO’s monitoring efforts of domestic labor rights. If ILO reports are mentioned or referenced in news coverage, then the visibility of ILO should demonstrate a cyclical pattern that peaks around the time of its release at the annual conference. To show this, I extract news coverage of the ILO from the Global Flows of Political Information (GLOWIN) project<sup>38</sup> and plot the daily mentions of the ILO in news articles. As shown in Figure A.1, the ILO consistently receives greater media attention around the organization’s annual conference, in which the circulation and discussion of reports constitute the main components of the conference agendas. In Figure A.2, I also compare the average monthly mentions of the ILO with other IOs such as the International Court of Justice, the World Trade Organization, and the International Criminal Court. On average, the media attention the ILO receives appears more cyclical than the other IOs, with the total number of media mentions comparable to the ICC and ICJ, and around 50% of the WTO.

Second, I look at the discourse on the ILO among political elites by examining politicians’ speeches in national legislatures. Using the parliament speech corpus collected by Hunter and Walter (2025)<sup>39</sup>, I fit a keyword-assisted topic model (Eshima, Imai and Sasaki, 2024) to characterize the focus of elites when they explicitly mention the ILO in their speech. The results, included in Appendix ??, show that when politicians refer to the ILO in their speech, the topic of international standard and monitoring

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<sup>38</sup>GLOWIN collects over 3 million online political news worldwide (across 2036 domains and 67 languages) over the period 2018–2021, constituting a quasi-representative corpus of online news media content worldwide (Parizek, 2024). Although the time period differs from my main analyses, the cyclical pattern is likely to be generalizable, since the ILO releases its reports around the same time during the annual conference each year, with the main goal of circulating and discussing various ILO reports.

<sup>39</sup>The dataset, *IOParlspeech*, contains all statements on IOs from legislative speeches held in national parliamentary debates in Austria, Canada, Germany, United Kingdom, United States, and New Zealand over the time period 1990 to 2018. In my analysis, I restricted the corpus to the mentions of the ILO in English-speaking parliaments between 1990–2012, resulting in 3,226 comments.

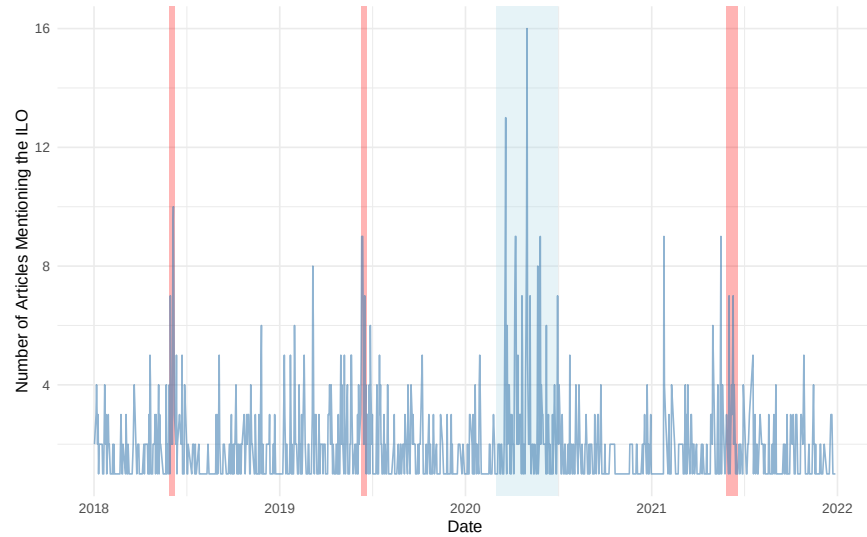


Figure A.1: The daily number of online news article mentioning the ILO, 2018-2021. The red shaded areas indicate the timing of the 107th, 108th, and 109th International Labor Conference. The 109th conference, originally scheduled for June 2020, was postponed to 2021 due to COVID. The blue shaded area indicates the first wave of the global COVID pandemic, during which the ILO discussed designating workplace health and safety as a fundamental and right at work.

– with characterizing keywords like conventions and reports – constitutes a significant portion of the topics compared to other common labor issues, such as international trade and employment. Taken together, these two descriptive patterns show the ILO’s effort to set labor standards, and to monitor the compliance of these standards, is both received and recognized across member states.

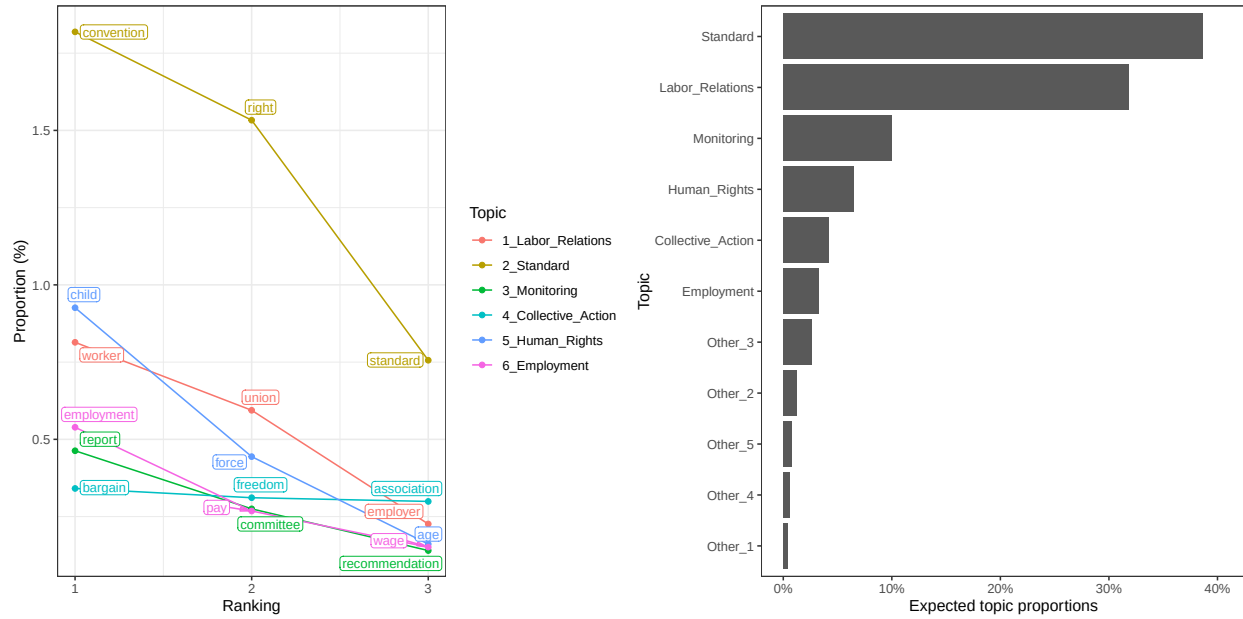


Figure A.3: Keyword topic distributions of ILO discourse in legislatures (US, UK, New Zealand, Canada). The left panel shows the frequency of keywords for 6 topics: labor relations, labor standards, international monitoring, collective actions, human rights, and employments. The right panel shows the expected proportions of the corpus belonging to each estimated topic.

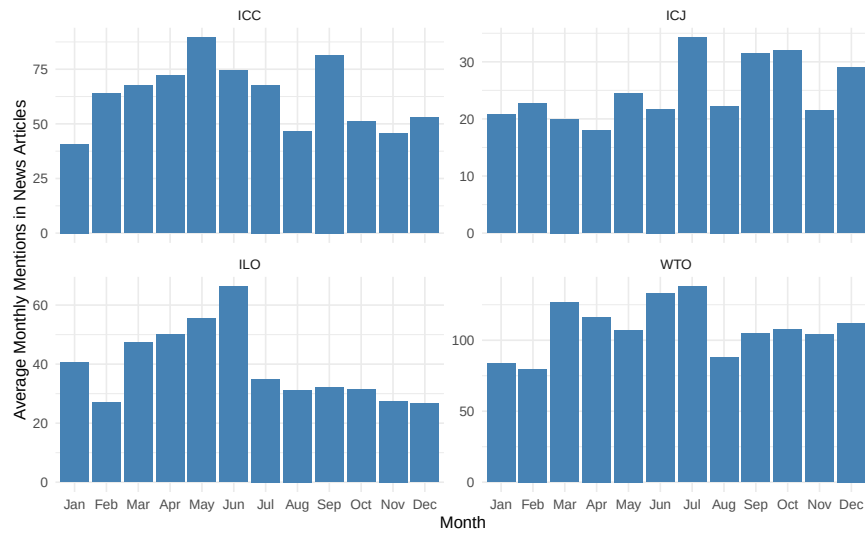


Figure A.2: Average monthly mentioned of IOs in online news articles, 2018-2021

## A.6 Alternative Explanation: Testing the effectiveness of CEACR direct requests

Table A.3: Effects of Direct Requests on Labor Rights Compliance

| Dependent Variables:<br>Model: | d_legal<br>(1)    | d_practice<br>(2) | d_legal<br>(3)      | d_practice<br>(4) |
|--------------------------------|-------------------|-------------------|---------------------|-------------------|
| <i>Variables</i>               |                   |                   |                     |                   |
| dr_lag                         | -0.186<br>(0.170) | -0.268<br>(0.198) | -0.263<br>(0.173)   | -0.297<br>(0.220) |
| d_lgdp                         |                   |                   | 2.440<br>(2.151)    | 2.024<br>(1.854)  |
| d_polity                       |                   |                   | 0.040<br>(0.063)    | 0.154*<br>(0.080) |
| d_physint                      |                   |                   | 0.065<br>(0.056)    | 0.065<br>(0.076)  |
| d_LINGO                        |                   |                   | 0.190**<br>(0.093)  | 0.183<br>(0.116)  |
| d_lpop                         |                   |                   | -18.033<br>(12.518) | -2.414<br>(7.640) |
| d_trade                        |                   |                   | -0.007<br>(0.007)   | 0.008<br>(0.007)  |
| d_fdinetinflows                |                   |                   | -0.003<br>(0.002)   | 0.000<br>(0.004)  |
| d_debt                         |                   |                   | -0.004<br>(0.014)   | 0.004<br>(0.011)  |
| d_labor_part                   |                   |                   | 0.000<br>(0.075)    | -0.044<br>(0.092) |
| <i>Fixed-effects</i>           |                   |                   |                     |                   |
| country                        | Yes               | Yes               | Yes                 | Yes               |
| year                           | Yes               | Yes               | Yes                 | Yes               |
| <i>Fit statistics</i>          |                   |                   |                     |                   |
| Observations                   | 1,717             | 1,717             | 1,408               | 1,408             |
| R <sup>2</sup>                 | 0.04226           | 0.07735           | 0.05029             | 0.08172           |

Clustered (country) standard-errors in parentheses

Signif. Codes: \*\*\*: 0.01, \*\*: 0.05, \*: 0.1

Table A.4: Effects of CFA reports on Labor Rights Compliance (Adjusted)

| Dependent Variables:<br>Model: | institution<br>(1) | behavior<br>(2)    | institution<br>(3)   | behavior<br>(4)    |
|--------------------------------|--------------------|--------------------|----------------------|--------------------|
| <i>Variables</i>               |                    |                    |                      |                    |
| l.foac                         | 0.080*<br>(0.044)  | 0.098**<br>(0.047) | 0.134***<br>(0.051)  | 0.107*<br>(0.064)  |
| d_lgdp                         |                    |                    | 3.554*<br>(2.055)    | 2.623<br>(1.883)   |
| d_polity                       |                    |                    | 0.026<br>(0.061)     | 0.151**<br>(0.070) |
| d_physint                      |                    |                    | 0.093<br>(0.058)     | 0.136*<br>(0.077)  |
| d_LINGO                        |                    |                    | 0.223**<br>(0.100)   | 0.134<br>(0.147)   |
| d_lpop                         |                    |                    | -16.124**<br>(7.614) | -8.545<br>(9.552)  |
| d_trade                        |                    |                    | 0.000<br>(0.007)     | 0.008<br>(0.008)   |
| d_fdinetinflows                |                    |                    | -0.030<br>(0.027)    | 0.017<br>(0.030)   |
| d_debt                         |                    |                    | -0.006<br>(0.020)    | -0.021<br>(0.017)  |
| d_labor_part                   |                    |                    | -0.128<br>(0.091)    | -0.171<br>(0.115)  |
| <i>Fixed-effects</i>           |                    |                    |                      |                    |
| country                        | Yes                | Yes                | Yes                  | Yes                |
| year                           | Yes                | Yes                | Yes                  | Yes                |
| <i>Fit statistics</i>          |                    |                    |                      |                    |
| Observations                   | 2,287              | 2,287              | 1,388                | 1,388              |
| R <sup>2</sup>                 | 0.02003            | 0.04617            | 0.03980              | 0.06550            |

*Clustered (country) standard-errors in parentheses*

*Signif. Codes: \*\*\*, 0.01, \*\*, 0.05, \*, 0.1*

## A.7 More Details on the Event Study

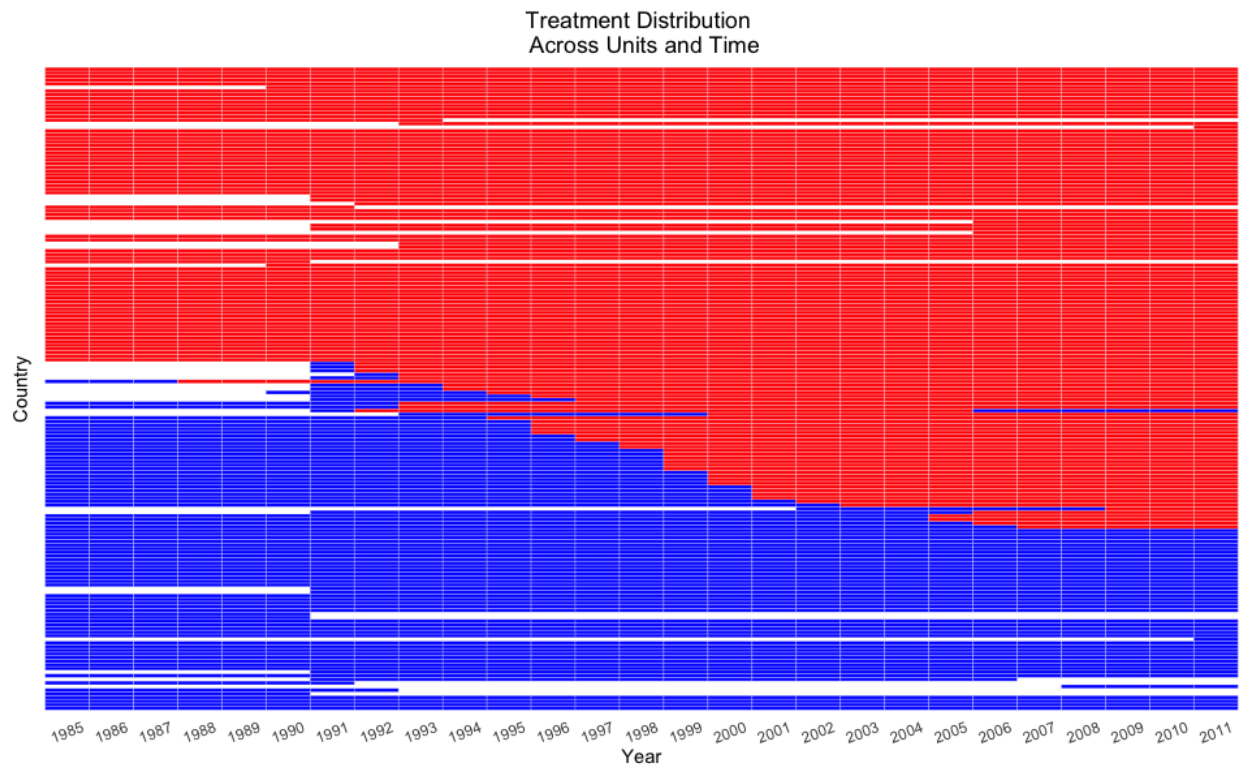


Figure A.4: The treatment history for model 1

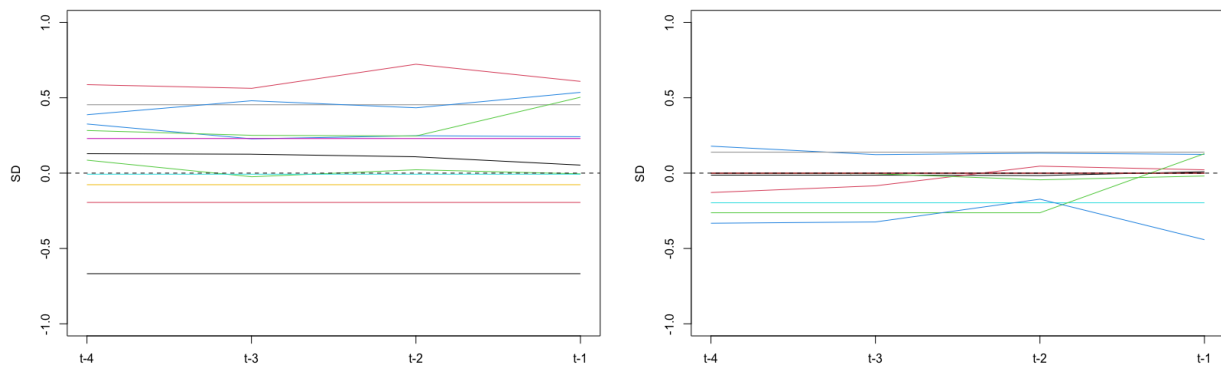


Figure A.5: Mahalanobis matching (right) significantly improves balance of matching covariates



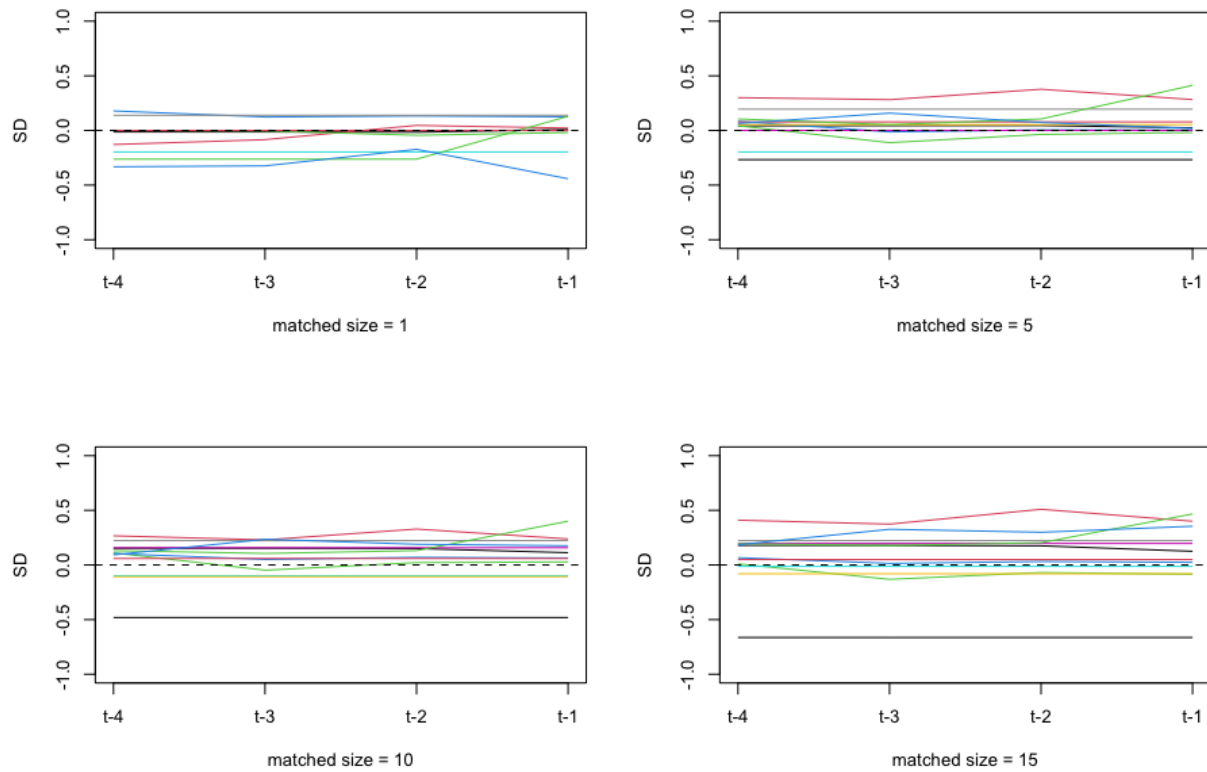


Figure A.6: Pairwise matching results in the best balance between treated and controlled units

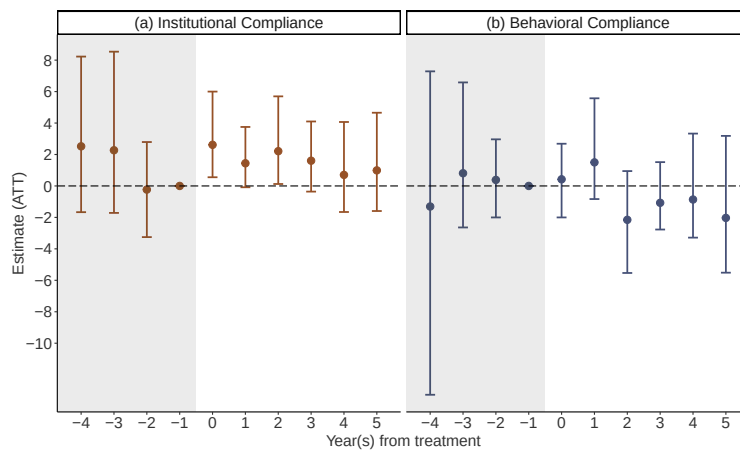


Figure A.7: Staggered difference-in-differences estimation after removing top-performing countries on labor rights (top decile). The error bars indicate 95% confidence intervals based on 1,000 bootstraps. The shaded areas denote pre-treatment periods.

## A.8 Regression Tables for $H_2$

| Dependent Variables:<br>Model: | institution<br>(1) | behavior<br>(2)     | institution<br>(3)  | behavior<br>(4)    | institution<br>(5) | behavior<br>(6)     |
|--------------------------------|--------------------|---------------------|---------------------|--------------------|--------------------|---------------------|
| l.foac                         | 0.027<br>(0.035)   | 0.118***<br>(0.028) | 0.151***<br>(0.048) | 0.126**<br>(0.062) | 0.070**<br>(0.032) | 0.113***<br>(0.039) |
| d_lgdp                         |                    |                     | 2.62<br>(2.25)      | 2.12<br>(1.92)     | 2.44<br>(2.01)     | 2.15<br>(1.75)      |
| d_polity                       |                    |                     | 0.029<br>(0.057)    | 0.112<br>(0.074)   | 0.026<br>(0.052)   | 0.094<br>(0.069)    |
| d_physint                      |                    |                     | 0.100*<br>(0.058)   | 0.059<br>(0.075)   | 0.091*<br>(0.052)  | 0.070<br>(0.071)    |
| d_LINGO                        |                    |                     | 0.265***<br>(0.100) | 0.128<br>(0.133)   | 0.143<br>(0.088)   | 0.065<br>(0.107)    |
| d_lpop                         |                    |                     | -13.5<br>(9.40)     | -2.27<br>(7.43)    | -12.9*<br>(7.70)   | -2.96<br>(6.10)     |
| d_trade                        |                    |                     | -0.0002<br>(0.007)  | 0.003<br>(0.008)   | -0.003<br>(0.006)  | 0.001<br>(0.007)    |
| d_fdinetinflows                |                    |                     | -0.032<br>(0.027)   | 0.031<br>(0.027)   | -0.010<br>(0.007)  | 0.007<br>(0.007)    |
| d_debt                         |                    |                     | 0.007<br>(0.024)    | -0.007<br>(0.017)  | -0.0001<br>(0.020) | 0.001<br>(0.015)    |
| d_labor_part                   |                    |                     | -0.030<br>(0.080)   | -0.112<br>(0.093)  | 0.014<br>(0.067)   | -0.094<br>(0.087)   |
| <i>Time Period</i>             |                    |                     |                     |                    |                    |                     |
|                                | 1985-2012          | 1985-2012           | 1985-2002           | 1985-2002          | 1985-2012          | 1985-2012           |
| <i>Fixed-effects</i>           |                    |                     |                     |                    |                    |                     |
| country                        | Yes                | Yes                 | Yes                 | Yes                | Yes                | Yes                 |
| year                           | Yes                | Yes                 | Yes                 | Yes                | Yes                | Yes                 |
| <i>Fit statistics</i>          |                    |                     |                     |                    |                    |                     |
| Observations                   | 2,756              | 2,756               | 1,398               | 1,398              | 1,790              | 1,790               |
| R <sup>2</sup>                 | 0.03               | 0.06                | 0.04                | 0.05               | 0.03               | 0.07                |

*Clustered (country) standard-errors in parentheses*

*Signif. Codes: \*\*\*: 0.01, \*\*: 0.05, \*: 0.1*

Table A.5: The effect of CFA reports on labor rights improvements: full regression results

| Dependent Variables:<br>Model:                            | institution<br>(1) | behavior<br>(2)   | institution<br>(3) | behavior<br>(4)  | institution<br>(5) | behavior<br>(6)   |
|-----------------------------------------------------------|--------------------|-------------------|--------------------|------------------|--------------------|-------------------|
| l.foac                                                    | 0.03<br>(0.04)     | 0.13***<br>(0.03) | 0.16***<br>(0.05)  | 0.13**<br>(0.06) | 0.07**<br>(0.03)   | 0.12***<br>(0.04) |
| d_lgdp                                                    |                    |                   | 2.76<br>(2.36)     | 2.17<br>(2.00)   | 2.74<br>(2.14)     | 2.15<br>(1.81)    |
| d_polity                                                  |                    |                   | 0.03<br>(0.06)     | 0.11<br>(0.08)   | 0.03<br>(0.05)     | 0.09<br>(0.07)    |
| d_physint                                                 |                    |                   | 0.11*<br>(0.06)    | 0.06<br>(0.08)   | 0.10*<br>(0.06)    | 0.08<br>(0.08)    |
| d_LINGO                                                   |                    |                   | 0.29**<br>(0.11)   | 0.13<br>(0.15)   | 0.16<br>(0.10)     | 0.08<br>(0.13)    |
| d_lpop                                                    |                    |                   | -13.97<br>(9.59)   | -2.24<br>(7.57)  | -13.91*<br>(8.03)  | -2.60<br>(6.14)   |
| d_trade                                                   |                    |                   | 0.00<br>(0.01)     | 0.00<br>(0.01)   | -0.00<br>(0.01)    | 0.00<br>(0.01)    |
| d_fdinetinflows                                           |                    |                   | -0.05<br>(0.03)    | 0.04<br>(0.03)   | -0.03<br>(0.02)    | 0.03<br>(0.02)    |
| d_debt                                                    |                    |                   | 0.01<br>(0.02)     | -0.01<br>(0.02)  | 0.00<br>(0.02)     | 0.00<br>(0.02)    |
| d_labor_part                                              |                    |                   | -0.03<br>(0.09)    | -0.12<br>(0.10)  | 0.02<br>(0.07)     | -0.11<br>(0.10)   |
| <i>Time Period</i>                                        |                    |                   |                    |                  |                    |                   |
|                                                           | 1985-2012          | 1985-2012         | 1985-2002          | 1985-2002        | 1985-2012          | 1985-2012         |
| <i>Fixed-effects</i>                                      |                    |                   |                    |                  |                    |                   |
| country                                                   | Yes                | Yes               | Yes                | Yes              | Yes                | Yes               |
| year                                                      | Yes                | Yes               | Yes                | Yes              | Yes                | Yes               |
| <i>Fit statistics</i>                                     |                    |                   |                    |                  |                    |                   |
| Observations                                              | 2417               | 2417              | 1272               | 1272             | 1576               | 1576              |
| R <sup>2</sup>                                            | 0.03               | 0.07              | 0.04               | 0.06             | 0.04               | 0.08              |
| <i>Clustered (country) standard-errors in parentheses</i> |                    |                   |                    |                  |                    |                   |
| <i>Signif. Codes: ***: 0.01, **: 0.05, *: 0.1</i>         |                    |                   |                    |                  |                    |                   |

Table A.6: The effect of CFA reports on labor rights improvements: Removing Top-Performing Countries on Labor Rights

|                       | Overall           | Institution      | Behavioral       | Overall           | Institution      | Behavioral      |
|-----------------------|-------------------|------------------|------------------|-------------------|------------------|-----------------|
| l.foac                | 0.18***<br>(0.05) | 0.07*<br>(0.03)  | 0.11**<br>(0.04) | 0.20**<br>(0.06)  | 0.09*<br>(0.04)  | 0.11*<br>(0.05) |
| d_lgdp                | 4.66<br>(2.93)    | 2.44<br>(2.01)   | 2.15<br>(1.75)   | 5.94<br>(3.18)    | 2.98<br>(2.14)   | 2.84<br>(1.90)  |
| d_polity              | 0.12<br>(0.10)    | 0.03<br>(0.05)   | 0.09<br>(0.07)   | 0.10<br>(0.10)    | 0.02<br>(0.06)   | 0.08<br>(0.07)  |
| d_physint             | 0.16<br>(0.08)    | 0.09<br>(0.05)   | 0.07<br>(0.07)   | 0.12<br>(0.09)    | 0.06<br>(0.06)   | 0.07<br>(0.08)  |
| d_LINGO               | 0.23<br>(0.13)    | 0.14<br>(0.09)   | 0.06<br>(0.11)   | 0.23<br>(0.13)    | 0.18*<br>(0.09)  | 0.04<br>(0.11)  |
| d_lpop                | -16.08<br>(12.48) | -12.91<br>(7.72) | -2.96<br>(6.11)  | -17.90<br>(12.74) | -13.49<br>(7.76) | -4.09<br>(6.27) |
| d_trade               | -0.00<br>(0.01)   | -0.00<br>(0.01)  | 0.00<br>(0.01)   | -0.00<br>(0.01)   | -0.00<br>(0.01)  | 0.00<br>(0.01)  |
| d_fdinetinflows       | -0.00<br>(0.01)   | -0.01<br>(0.01)  | 0.01<br>(0.01)   | -0.00<br>(0.01)   | -0.01<br>(0.01)  | 0.01<br>(0.01)  |
| d_debt                | -0.00<br>(0.02)   | -0.00<br>(0.02)  | 0.00<br>(0.02)   | -0.01<br>(0.02)   | -0.00<br>(0.02)  | -0.00<br>(0.02) |
| d_labor_part          | -0.08<br>(0.10)   | 0.01<br>(0.07)   | -0.09<br>(0.09)  | -0.11<br>(0.12)   | -0.01<br>(0.08)  | -0.10<br>(0.10) |
| <i>Fixed-effects</i>  |                   |                  |                  |                   |                  |                 |
| country               | Yes               | Yes              | Yes              | Yes               | Yes              | Yes             |
| year                  | Yes               | Yes              | Yes              | Yes               | Yes              | Yes             |
| region                | Yes               | Yes              | Yes              | No                | No               | No              |
| <i>Fit statistics</i> |                   |                  |                  |                   |                  |                 |
| Observations          | 1,790             | 1,790            | 1,790            | 1,639             | 1,639            | 1,639           |
| R <sup>2</sup>        | 0.05              | 0.03             | 0.07             | 0.04              | 0.03             | 0.06            |

*Clustered (country) standard-errors in parentheses*

*Signif. Codes: \*\*\*: 0.01, \*\*: 0.05, \*: 0.1*

Table A.7: The effect of CFA reports on labor rights improvements: addressing potential observational bias from Latin America Region

## A.9 Sensitivity analysis for table 1

This section describes the procedure to carry out the sensitivity analysis for  $H_2$  as proposed by Cinelli and Hazlett (2020). Suppose that there is some unobserved covariate  $U_i$  that is correlated both with the presence of CFA reports and with the outcome variables. Intuitively, we want to measure how strong the relationship between  $U_i$  and the variable measuring CFA reports –i.e., FOA CASES – and the relationship between  $U_i$  and the outcome variables on labor rights improvements, would have to be to completely explain away the effect attributed to the CFA reports in the linear regressions presented in table 1. Formally, the strengths of these relationships are measured by partial  $R^2$ :

$$R^2_{Y_i \sim U_i | \text{CFA report}_i, \mathbf{X}} = \frac{R^2_{Y_i \sim \text{CFA report}_i + \mathbf{X} + U_i} - R^2_{Y_i \sim \text{CFA report}_i + \mathbf{X}}}{1 - R^2_{Y_i \sim \text{CFA report}_i + \mathbf{X}}}$$

$$R^2_{\text{CFA report}_i \sim U_i | \mathbf{X}} = \frac{R^2_{\text{CFA report}_i \sim \mathbf{X} + U_i} - R^2_{\text{CFA report}_i \sim \mathbf{X}}}{1 - R^2_{\text{CFA report}_i \sim \mathbf{X}}}$$

, which are then used to compute the estimated value of bias:

$$|\widehat{\text{bias}}| = \sqrt{R^2_{Y \sim U | \text{CFA report}, \mathbf{X}} \times \frac{R^2_{\text{CFA report} \sim U | \mathbf{X}}}{1 - R^2_{\text{CFA report} \sim U | \mathbf{X}} \times \frac{\mathbb{V}(Y_i^{\perp \mathbf{X}, \text{CFA report}})}{\mathbb{V}(\text{CFA report}^{\perp \mathbf{X}})}}$$

The curves on the graph shown in fig. A.8 represent the change in  $\hat{\beta}$ , the coefficient on the treatment variable FOA CASE, that would result from varying the partial  $R^2$  of the unobserved confounder with the treatment variable and different assumed values for the partial  $R^2$  of the unobserved confounder with the outcome variables, institutional (left) and behavioral (right) improvements in collective labor rights. On each curve, the combination of the two partial  $R^2$  results in the same value for the bias. The red dotted line indicates the curve on which the bias would completely explain away the effect attributed to the CFA reports in the original regression. For instance, unobserved confounders that explain more than 36% of the residual variance of both the CFA reports and the institutional improvements of labor rights are strong enough to bring the point estimate to 0, namely, the bias would equal 100% of the original estimate. Similarly, to account for the effect of CFA reports on be-

havioral improvements of labor rights, unobserved confounders need to explain more than 46.51% of the residual variance on both variables.

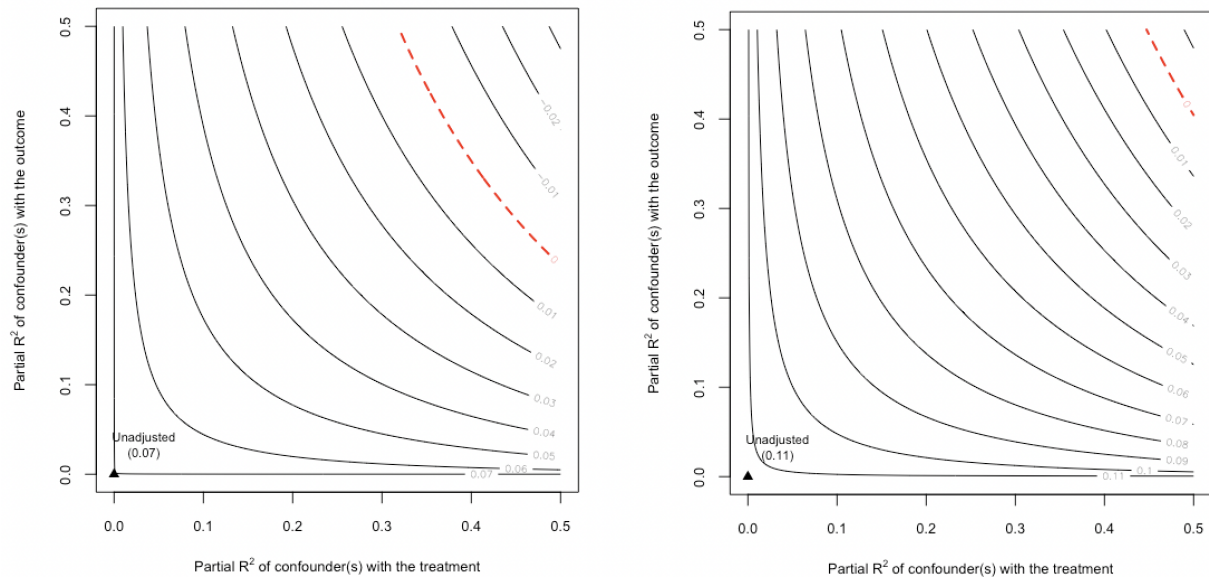


Figure A.8: The plots show the sensitivity of model (5) and (6) in Table 1 to potential unobservable omitted variable bias.

## A.10 Placebo Test for NAFTA's effect on labor compliance

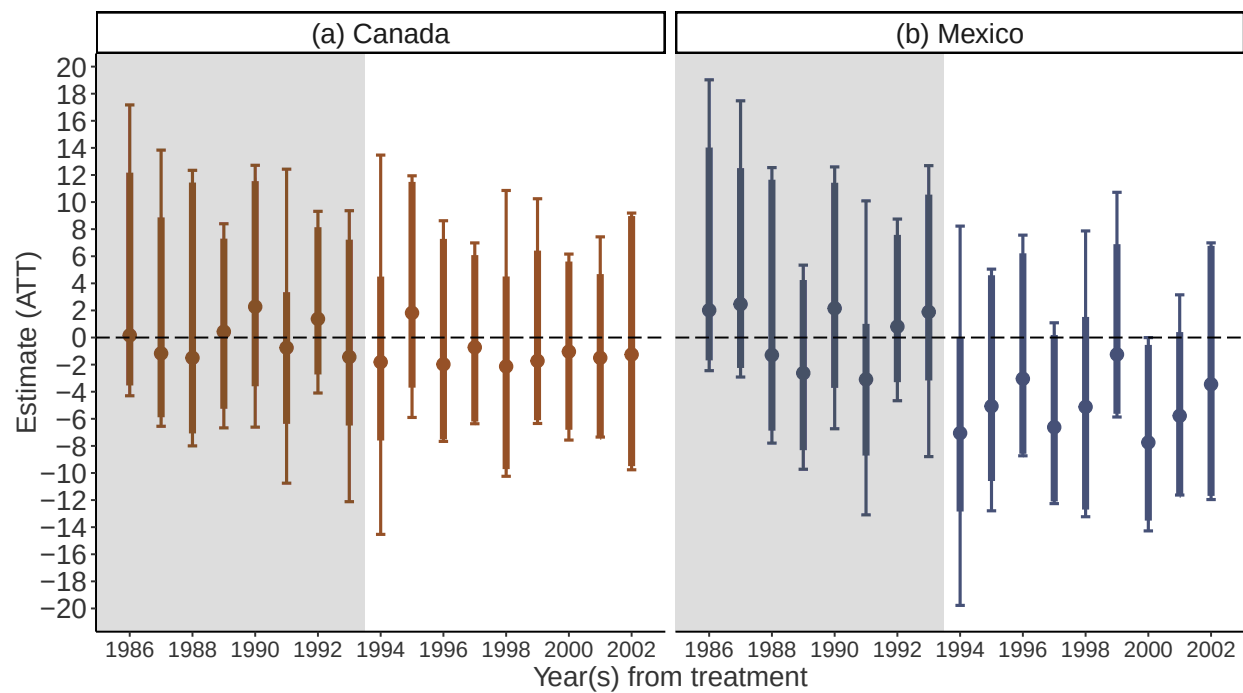


Figure A.9: Synthetic Controls for Canada and Mexico's Institutional Compliance of Labor Rights before and after the enforcement of NAFTA